

1 ENGROSSED HOUSE
2 BILL NO. 3521

By: Marti of the House

3 and

4 Reinhardt of the Senate

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6
7
8 An Act relating to financial institutions; creating
9 the Oklahoma Money Transmission Modernization Act;
10 providing legislative intent; defining terms;
11 exempting certain individuals from the Oklahoma Money
12 Transmission Modernization Act; permitting the
13 Commissioner of the Banking Department to require
14 proof of exemption; empowering the Commissioner in
15 order to carry out the purposes of the act; granting
16 the Commissioner broad administrative authority to
17 administer, interpret, and enforce act; authorizing
18 Commissioner to promulgate rules; authorizing the
19 Commissioner to recover costs by imposing and
20 collecting fees and costs; exempting information
21 obtained by the Commissioner from the Oklahoma Open
22 Records Act; permitting disclosure of information
23 under certain circumstances; permitting the
24 Commissioner to disclose list of all licensees and
aggregated financial or transactional data; listing
information that can be disclosed; permitting the
Commissioner to conduct investigations to administer
and enforce the act; granting the Commissioner power
to administer oaths, subpoena witnesses, compel
attendance, take evidence, and require production of
documents; authorizing the Commissioner to file an
application with a district court to order a person
to appear before the Commissioner; authorizing the
Commissioner to conduct an examination or
investigation of a licensee; listing permissible
examination or investigation approaches; requiring a
licensee or delegate provide all records to the
Commissioner; requiring a licensee to pay all costs
reasonably incurred during an examination;
authorizing and encouraging Commissioner to

1 participate in multistate supervisory processes;
2 clarifying section does not constitute waiver of
3 Commissioner's authority to conduct an examination or
4 investigation; clarifying effect of federal law on
5 act; prohibiting a person from engaging in the
6 business of money transmission unless licensed;
7 exempting certain persons from licensure; providing
8 that a license is not transferable or assignable;
9 empowering and encouraging the Commissioner to
10 establish consistent licensing between the state;
11 empowering and encouraging the Commissioner to
12 establish relationships or contracts with the
13 Nationwide Multistate Licensing System and Registry;
14 authorizing the Commissioner to utilize the
15 Nationwide Multistate Licensing System and Registry
16 for all aspects of licensing; permitting the
17 Commissioner to waive or modify requirements as
18 necessary to participate in the Nationwide Multistate
19 Licensing System and Registry; requiring applicants
20 for license use form prescribed by the Commissioner;
21 authorizing Commissioner to create form and change
22 form as necessary; requiring the application to
23 contain certain information; adding application
24 requirements for corporations, limited liability
companies, partnerships, or other legal entities;
providing for a nonrefundable application fee of Four
Thousand Dollars and a nonrefundable license fee of
Three Thousand Dollars; permitting the Commissioner
to waive one or more of the application requirements;
requiring an individual in control of a licensee or
applicant, an individual that seeks to acquire
control of a licensee, or each key individual to
furnish to the Commissioner certain information;
requiring international individuals to provide
certain information; providing process for granting
or denying applications for licensure; clarifying
meaning of determination by the Commissioner;
authorizing the Commissioner to conduct on-site
investigation of an applicant; requiring the
application to pay reasonable cost of on-site
investigation; permitting the Commissioner to issue
license if certain conditions are met; requiring
formal written notice of a denial of a license
application and the specific reasons for the denial;
authorizing applicant to appeal Commissioner's denial
to the Oklahoma State Banking Board; permitting
denial of an applicant if applicant was denied a

1 license in the state in which the applicant is
2 located or based on the findings of another state;
3 requiring a license be renewed annually; providing
4 for a Three Thousand Dollar renewal fee; providing
5 procedure for renewal; permitting the Commissioner to
6 extend a renewal date for good cause; permitting the
7 Commissioner to suspend or revoke a license in
8 accordance with this act; requiring prior written
9 approval for any person to acquire control of a
10 licensee; providing procedure for acquiring control
11 of a licensee; providing for a nonrefundable fee of
12 Four Thousand Dollars; authorizing the Commissioner
13 to approve an acquisition of control if certain
14 conditions are met; requiring formal notice of denial
15 of an application to acquire control and to specify
16 the reasons for denial; permitting applicant to
17 appeal denial to the Oklahoma State Banking Board;
18 exempting certain persons from requirements;
19 requiring notification to the Commissioner of
20 acquisition of control by exempted persons; exempting
21 certain circumstances from application requirement;
22 providing procedure for adding or replacing any key
23 individual; requiring licensees to submit a report of
24 condition; providing procedure and requirements for
report; requiring yearly audited financial statement;
setting requirements for audited financial statement;
requiring report of authorized delegates; providing
for contents of the report; requiring licensee file a
report if certain events occur or the occurrence of a
felony charge or conviction; requiring licensees to
comply with federal and state reporting requirements;
providing for the retention of records; permitting
records be maintained in any form; requiring records
be open to inspection by Commissioner; defining
remit; providing procedure to be authorized to
conduct business through an authorized delegate;
requiring written contract; requiring licensee to
notify authorized delegate of licensee's suspension,
revocation, surrender, or expiration; providing
effect of comingling funds by authorized delegate;
prohibiting use of subdelegate; prohibiting a person
from engaging in the business of money transmission
on behalf of a person not in compliance with act;
requiring licensees to forward money in accordance
with an agreement unless licensee has a reasonable
belief sender is victim of fraud or of a possible
occurrence of a crime or violation of a law, rule, or

1 regulation; exempting certain transmission of money
2 from certain requirements; requiring licensee refund
3 money upon written request except under certain
4 circumstances; exempting certain transmission of
5 money from requirements of section; defining receipt;
6 requiring licensee or authorized delegate provide a
7 receipt; listing requirements for receipt; requiring
8 licensees that provide payroll processing services to
9 provide certain information; requiring licensees to
10 retain certain net worth; authorizing the
11 Commissioner to exempt licensees for good cause from
12 net worth requirement; requiring surety bond;
13 requiring licensees to maintain permissible
14 investments; authorizing the Commissioner to limit
15 the extent to which certain specific investments may
16 be considered permissible investments; authorizing
17 statutory trust; exempting permissible investments
18 impressed with a trust from attachment, levy, or
19 sequestration except for a beneficiary; requiring
20 Commissioner to notify other states of existence of
21 statutory trust; authorizing Commissioner to allow
22 other types of investments; providing for types of
23 permissible investments; authorizing the Commissioner
24 to suspend or revoke a license for certain reasons;
permitting the Commissioner to consider certain
information in determining whether a licensee is
engaging in unsafe or unsound practice; permitting
the Commissioner to issue an order suspending or
revoking the designation of an authorized delegate if
the Commissioner makes certain findings; permitting
the Commissioner to consider certain information in
determining whether an authorized delegate is
engaging in unsafe or unsound practice; permitting
the authorized delegate to apply for relief from
suspension or revocation according to procedure
prescribed by the Commissioner; authorizing the
Commissioner to issue cease and desist orders;
permitting licensee or authorized delegate to appeal
an order to cease and desist; authorizing the
Commissioner to enter into consent orders; providing
procedure and requirements for consent orders;
deeming consent orders are final order and may not be
appealed; creating a Class D1 felony for any person
who intentionally makes a false statement,
misrepresentation, or false certification in a record
filed or required to be maintained under this act or
that intentionally makes a false entry or omits a

1 material entry in such a record; prescribing
2 penalties; creating a Class D1 felony for any person
3 who knowingly engages in an activity for which a
4 license is required under this act without being
5 licensed under this act; prescribing penalties;
6 authorizing the Commissioner to assess fines for
7 violation of the act in an amount not to exceed Five
8 Thousand Dollars per violation; permitting the
9 Commissioner to assess costs and expenses for
10 investigation and prosecution; permitting the
11 Commissioner to issue a cease and desist for
12 violation of Section 12 of this act; authorizing the
13 Commissioner to petition the District Court of
14 Oklahoma County to issue a temporary restraining
15 order; providing effect of cease and desist order;
16 permitting licensee or authorized delegate to file an
17 appeal with the Oklahoma State Banking Board;
18 amending Section 2, Chapter 363, O.S.L. 2025 (6 O.S.
19 Supp. 2025, Section 1520.1), which relates to digital
20 asset kiosk operators; updating reference; amending
21 Section 14, Chapter 366, O.S.L. 2024 (21 O.S. Supp.
22 2025, Section 20N), which relates to Class D1
23 offenses; adding crimes to list; amending 21 O.S.
24 2021, Section 1268.8, as amended by Section 129,
Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section
1268.8), which relates to the use of money
transmission in violation of the Oklahoma
Antiterrorism Act; updating references; amending 63
O.S. 2021, Sections 2-503.1b, 2-503.1d, as amended by
Section 278, Chapter 486, O.S.L. 2025 (63 O.S. Supp.
2025, Section 2-503.1d), 2-503.1e, as amended by
Section 279, Chapter 486, O.S.L. 2025 (63 O.S. Supp.
2025, Section 2-503.1e), 2-503.1h, 2-503.1i, 2-
503.1j, and 2-503.1l, which relate to the enforcement
and administration of the Uniform Dangerous
Substances Act; updating references; repealing 6 O.S.
2021, Sections 1511, 1512, 1513, 1514, and 1515,
which relate to the Oklahoma Financial Transaction
Reporting Act; providing for codification; and
providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1551 of Title 6, unless there is
3 created a duplication in numbering, reads as follows:

4 This act shall be known and may be cited as the "Oklahoma Money
5 Transmission Modernization Act".

6 SECTION 2. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 1552 of Title 6, unless there is
8 created a duplication in numbering, reads as follows:

9 The Oklahoma Money Transmission Modernization Act replaces
10 existing state money transmission laws. It is the intent of the
11 Legislature that the provisions of this act accomplish the
12 following:

13 1. Ensure states can coordinate in all areas of regulation,
14 licensing, and supervision to eliminate unnecessary regulatory
15 burdens and more effectively utilize regulator resources;

16 2. Protect the public from financial crime;

17 3. Standardize the types of activities that are subject to
18 licensing or otherwise exempt from licensing; and

19 4. Modernize safety and soundness requirements to ensure
20 customer funds are protected in an environment that supports
21 innovative and competitive business practices.

22 SECTION 3. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 1553 of Title 6, unless there is
24 created a duplication in numbering, reads as follows:

As used in the Oklahoma Money Transmission Modernization Act:

1. "Acting in concert" means persons knowingly acting together with a common goal of jointly acquiring control of a licensee whether or not pursuant to an express agreement;

2. "Authorized delegate" means any person a licensee designates to engage in money transmission on behalf of the licensee;

3. "Average daily money transmission liability" means the amount of the licensee's outstanding money transmission obligations in Oklahoma at the end of each day in a given period of time, added together, and divided by the total number of days in the given period of time. For purposes of calculating average daily money transmission liability under this act for any licensee required to do so, the given period of time shall be the quarters ending March 31, June 30, September 30, and December 31;

4. "Bank Secrecy Act" means the Bank Secrecy Act, 31 U.S.C., Section 5311 et seq. and its implementing regulations, as amended and recodified from time to time;

5. "Closed loop stored value" means stored value that is redeemable by the issuer only for goods or services provided by the issuer or its affiliate or franchisees of the issuer or its affiliate, except to the extent required by applicable law to be redeemable in cash for its cash value;

6. "Commissioner" means the State Banking Commissioner of the Oklahoma State Banking Department as provided for in subsection B of

1 Section 201 of Title 6 of the Oklahoma Statutes or a person
2 designated by the Commissioner and acting under the Commissioner's
3 direction and authority;

4 7. a. "Control" means a controlling influence as determined
5 by the Commissioner, or the power to:

6 (1) directly or indirectly vote at least twenty-five
7 percent (25%) of the outstanding voting shares or
8 voting interests of a licensee or person in
9 control of a licensee,

10 (2) elect or appoint a majority of key individuals or
11 executive officers, managers, directors,
12 trustees, or other persons exercising managerial
13 authority over a person in control of a licensee,
14 or

15 (3) directly or indirectly exercise a controlling
16 influence over the management or policies of a
17 licensee or person in control of a licensee.

18 b. A person is presumed to exercise a controlling
19 influence when the person holds the power to vote,
20 directly or indirectly, at least ten percent (10%) of
21 the outstanding voting shares or voting interests of a
22 licensee or person in control of a licensee. The
23 presumption of control defined by this subparagraph
24 may be rebutted by evidence that the person who is

1 presumed to exercise a controlling influence is a
2 passive investor.

3 c. For purposes of determining the percentage of a person
4 controlled by any other person, the person's interest
5 shall be aggregated with the interest of any other
6 immediate family member, including the person's
7 spouse, parents, children, siblings, mothers- and
8 fathers-in-law, sons- and daughters-in-law, brothers-
9 and sisters-in-law, and any other person who shares
10 such person's home.

11 d. The Commissioner shall have broad authority to
12 designate a person as someone who has controlling
13 influence if the person owns voting shares of a
14 licensee or if the person acts on behalf of someone
15 who owns voting shares of a licensee. A determination
16 made by the Commissioner under this paragraph is not
17 rebuttable;

18 8. "Currency" means the coin and paper money issued by the
19 United States or another country that is designated as legal tender,
20 circulates, and is customarily used and accepted as a medium of
21 exchange in the country of issuance;

22 9. "Department" means the Oklahoma State Banking Department;

23 10. "Digital asset" means the same as defined in Section 1520
24 of Title 6 of the Oklahoma Statutes;

1 11. "Digital asset kiosk" means the same as defined in Section
2 1520 of Title 6 of the Oklahoma Statutes;

3 12. "Digital asset kiosk operator" means the same as defined in
4 Section 1520 of Title 6 of the Oklahoma Statutes;

5 13. "Eligible rating" means a sufficiently high credit rating
6 given by an eligible rating service. If a security has differing
7 credit ratings given by multiple eligible rating services, the
8 highest rating shall apply when determining whether the security has
9 an eligible rating. For purposes of this definition, a sufficiently
10 high credit rating is a credit rating of any of the three highest
11 rating categories provided by an eligible rating service, including:

12 a. a long-term credit rating of A- or higher by S&P
13 Global Ratings,

14 b. a short-term credit rating of A-2, SP-2, or higher by
15 S&P Global Ratings, or

16 c. the relative equivalent rating from an eligible rating
17 service that does not have a rating described by
18 subparagraphs a and b of this paragraph;

19 14. "Eligible rating service" means any nationally recognized
20 statistical rating organization as defined by the United States
21 Securities and Exchange Commission, and any other organization
22 designated by the Commissioner by rule or order;

23 15. "Federally insured depository financial institution" means
24 a bank, credit union, savings and loan association, trust company,

1 savings association, savings bank, industrial bank, or industrial
2 loan company organized under the laws of the United States, or any
3 state of the United States, when such bank, credit union, savings
4 and loan association, trust company, savings association, savings
5 bank, industrial bank, or industrial loan company has federally
6 insured deposits;

7 16. "In this state" means:

8 a. for a transaction requested in person, a physical
9 location within this state, or

10 b. for a transaction requested electronically or by
11 phone, a determination that the person requesting the
12 transaction is in this state based on:

13 (1) information provided by the person regarding:

14 (a) if the person is an individual, the location
15 of the individual's residential address, or

16 (b) if the person is a business entity, the
17 entity's principal place of business or
18 other physical address location, and

19 (2) any records associated with the person that the
20 provider of the money transmission has that
21 indicate the person's location, including an
22 address associated with the person's account;

23 17. "Individual" means a natural person;
24

1 18. "Key individual" means any individual ultimately
2 responsible for establishing or directing policies and procedures of
3 the licensee, such as an executive officer, manager, director, or
4 trustee;

5 19. "Licensee" means a person licensed under the Oklahoma Money
6 Transmission Modernization Act;

7 20. "Material litigation" means litigation that, according to
8 United States generally accepted accounting principles, is
9 significant to a person's financial health and would be required to
10 be disclosed in the person's annual audited financial statements,
11 report to shareholders, or similar records;

12 21. "Money" or "monetary value" means currency or a claim that
13 can be converted into currency through a financial institution,
14 electronic payments network, or other formal or informal payment
15 system. The term includes stablecoin that:

- 16 a. is pegged to a sovereign currency,
- 17 b. is fully backed by assets held in reserve, and
- 18 c. grants a holder of the stablecoin the right to redeem
19 the stablecoin for sovereign currency from the issuer;

20 22. "Money transmission" means any of the following:

- 21 a. selling or issuing payment instruments to a person
22 located in this state,
- 23 b. selling or issuing stored value to a person located in
24 this state,

- 1 c. receiving money for transmission from a person located
2 in this state, and
3 d. payroll processing services.

4 Money transmission does not mean the provision of solely online
5 or telecommunications services or network access;

6 23. "MSB accredited state" means a state agency that is
7 accredited by the Conference of State Bank Supervisors and Money
8 Transmitter Regulators Association for money transmission licensing
9 and supervision;

10 24. "Multistate licensing process" means any agreement entered
11 into by and among state regulators relating to coordinated
12 processing of applications for money transmission licenses,
13 applications for the acquisition of control of a licensee, control
14 determinations, or notice and information requirements for a change
15 of key individuals;

16 25. "NMLS" means the Nationwide Multistate Licensing System and
17 Registry developed by the Conference of State Bank Supervisors and
18 the American Association of Residential Mortgage Regulators and
19 owned and operated by the State Regulatory Registry, LLC, or any
20 successor or affiliated entity, for the licensing and registration
21 of persons in financial services industries;

22 26. "Outstanding money transmission obligations" shall be
23 established and extinguished in accordance with applicable state law
24 and shall mean:

1 a. any payment instrument or stored value:

2 (1) that has been:

3 (a) issued or sold by a money transmission
4 licensee to a person located in any state,
5 territory, or possession of the United
6 States, the District of Columbia, the
7 Commonwealth of Puerto Rico, or a United
8 States military installation that is located
9 in a foreign country, or

10 (b) reported as sold by an authorized delegate
11 to a person who is located in any state,
12 territory, or possession of the United
13 States, the District of Columbia, the
14 Commonwealth of Puerto Rico, or a United
15 States military installation that is located
16 in a foreign country, and

17 (2) that has not been:

18 (a) paid or refunded by or for the licensee, or

19 (b) escheated in accordance with applicable
20 abandoned property laws, or

21 b. money received for money transmission services by a
22 money transmission licensee or an authorized delegate
23 from a person located in any state, territory, or
24 possession of the United States, the District of

1 Columbia, the Commonwealth of Puerto Rico, or a United
2 States military installation that is located in a
3 foreign country that has not been:

4 (1) received by the payee or refunded to the person,
5 or

6 (2) escheated in accordance with applicable abandoned
7 property laws;

8 27. "Passive investor" means a person who:

9 a. does not have the power to elect a majority of key
10 individuals or executive officers, managers,
11 directors, trustees, or other persons exercising
12 managerial authority of a person in control of a
13 licensee,

14 b. is not employed by and does not have any managerial
15 duties of the licensee or person in control of a
16 licensee,

17 c. does not have the power to exercise, directly or
18 indirectly, a controlling influence over the
19 management or policies of a licensee or person in
20 control of a licensee, and

21 d. either:

22 (1) attests to subparagraphs a, b, and c of this
23 paragraph, in a form and medium prescribed by the
24 Commissioner, or

1 (2) commits to subparagraphs a, b, and c of this
2 paragraph in a written document;

3 28. "Payment instrument" means a written or electronic check,
4 draft, money order, traveler's check, or other written or electronic
5 instrument for the transmission or payment of money or monetary
6 value, whether or not negotiable. The term does not include stored
7 value or any instrument that is:

8 a. redeemable by the issuer only for goods or services
9 provided by the issuer or its affiliate or franchisees
10 of the issuer or its affiliate, except to the extent
11 required by applicable law to be redeemable in cash
12 for its cash value, or

13 b. not sold to the public but issued and distributed as
14 part of a loyalty, rewards, or promotional program;

15 29. "Payroll processing services" means receiving money for
16 transmission pursuant to a contract with a person to deliver wages
17 or salaries, make payment of payroll taxes to state and federal
18 agencies, make payments relating to employee benefit plans, or make
19 distributions of other authorized deductions from wages or salaries.
20 The term payroll processing services does not include an employer
21 performing payroll processing services on its own behalf or on
22 behalf of its affiliate, or a professional employer organization
23 subject to regulation under other applicable state law;

1 30. "Person" means any individual, general partnership, limited
2 partnership, limited liability company, corporation, trust,
3 association, joint stock corporation, or other corporate entity
4 identified by the Commissioner;

5 31. "Receiving money for transmission" or "money received for
6 transmission" means receiving money or monetary value in the United
7 States for transmission within or outside the United States by
8 electronic or other means;

9 32. "Stored value" means monetary value representing a claim
10 against the issuer evidenced by an electronic or digital record and
11 that is intended and accepted for use as a means of redemption for
12 money or monetary value or payment for goods or services. The term
13 includes, but is not limited to, "prepaid access" as defined by 31
14 C.F.R., Section 1010.100, as amended. Notwithstanding the
15 foregoing, the term stored value does not include a payment
16 instrument or closed loop stored value, or stored value not sold to
17 the public but issued and distributed as part of a loyalty, rewards,
18 or promotional program; and

19 33. "Tangible net worth" means the aggregate assets of a
20 licensee excluding all intangible assets, less liabilities, as
21 determined in accordance with United States generally accepted
22 accounting principles.
23
24

1 SECTION 4. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 1554 of Title 6, unless there is
3 created a duplication in numbering, reads as follows:

4 The Oklahoma Money Transmission Modernization Act shall not
5 apply to:

6 1. An operator of a payment system to the extent that it
7 provides processing, clearing, or settlement services, between or
8 among persons exempted by this section or licensees, in connection
9 with wire transfers, credit card transactions, debit card
10 transactions, stored-value transactions, automated clearinghouse
11 transfers, or similar funds transfers;

12 2. A person appointed as an agent of a payee to collect and
13 process a payment from a payor to the payee for goods or services,
14 other than money transmission itself, provided to the payor by the
15 payee, provided that:

- 16 a. there exists a written agreement between the payee and
17 the agent directing the agent to collect and process
18 payments from payors on the payee's behalf,
19 b. the payee holds the agent out to the public as
20 accepting payments for goods or services on the
21 payee's behalf, and
22 c. payment for the goods or services is treated as
23 received by the payee upon receipt by the agent so
24 that the payor's obligation is extinguished and there

1 is no risk of loss to the payor if the agent fails to
2 remit the funds to the payee;

3 3. A person that acts as an intermediary by processing payments
4 between an entity that has directly incurred an outstanding money
5 transmission obligation to a sender, and the sender's designated
6 recipient, provided that the entity:

7 a. is properly licensed or exempt from licensing
8 requirements under this act,

9 b. provides a receipt, electronic record, or other
10 written confirmation to the sender identifying the
11 entity as the provider of money transmission in the
12 transaction, and

13 c. bears sole responsibility to satisfy the outstanding
14 money transmission obligation to the sender, including
15 the obligation to make the sender whole in connection
16 with any failure to transmit the funds to the sender's
17 designated recipient;

18 4. The United States or a department, agency, or
19 instrumentality thereof, or its agent;

20 5. Money transmission by the United States Postal Service or by
21 an agent of the United States Postal Service;

22 6. A state, county, city, or any other governmental agency or
23 governmental subdivision or instrumentality of a state, or its
24 agent;

1 7. A federally insured depository financial institution, bank
2 holding company, office of an international banking corporation,
3 foreign bank that establishes a federal branch pursuant to the
4 International Banking Act of 1978, 12 U.S.C., Section 3101 et seq.,
5 as amended, corporation organized pursuant to the Bank Service
6 Company Act, 12 U.S.C., Sections 1861 through 1867, as amended, or
7 corporation organized under the Edge Act, 12 U.S.C., Sections 611
8 through 633, as amended;

9 8. Electronic funds transfer of governmental benefits for a
10 federal, state, county, or governmental agency by a contractor on
11 behalf of the United States or a department, agency, or
12 instrumentality thereof, or on behalf of a state or governmental
13 subdivision, agency, or instrumentality thereof;

14 9. A board of trade designated as a contract market under the
15 Commodity Exchange Act, 7 U.S.C., Sections 1 through 25, as amended,
16 or a person that, in the ordinary course of business, provides
17 clearance and settlement services for a board of trade to the extent
18 of its operation as or for such a board;

19 10. A registered futures commission merchant under the federal
20 commodities laws to the extent of its operation as such a merchant;

21 11. A person registered as a securities broker-dealer under
22 federal or state securities laws to the extent of its operation as
23 such a broker-dealer;

1 12. An individual employed by a licensee, authorized delegate,
2 or any person exempted from the licensing requirements of this act
3 when acting within the scope of employment and under the supervision
4 of the licensee, authorized delegate, or exempted person as an
5 employee and not as an independent contractor;

6 13. A person expressly appointed as a third-party service
7 provider to or agent of an entity exempt under paragraph 7 of this
8 section, solely to the extent that:

- 9 a. such service provider or agent is engaging in money
10 transmission on behalf of and pursuant to a written
11 agreement with the exempt entity that sets forth the
12 specific functions that the service provider or agent
13 is to perform, and
14 b. the exempt entity assumes all risk of loss and all
15 legal responsibility for satisfying the outstanding
16 money transmission obligations owed to purchasers and
17 holders of the outstanding money transmission
18 obligations upon receipt of the purchaser's or
19 holder's money or monetary value by the service
20 provider or agent;

21 14. A person exempt by regulation or order if the Commissioner
22 finds such exemption to be in the public interest and that the
23 regulation of such person is not necessary for the purposes of this
24 act; and

1 15. A person who provides payroll processing services as
2 defined by paragraph 29 of Section 3 of this act, except in
3 circumstances where the Commissioner determines, at his or her
4 discretion, licensure to be in the best interest of public safety or
5 if the Commissioner determines the person is operating in a manner
6 that is not safe or sound. Any person who is exempt pursuant to
7 this paragraph shall register on a form created and provided by the
8 Department.

9 SECTION 5. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 1555 of Title 6, unless there is
11 created a duplication in numbering, reads as follows:

12 The Commissioner may require any person claiming to be exempt
13 from licensing pursuant to Section 4 of this act to provide
14 information and documentation to the Commissioner demonstrating that
15 it qualifies for any claimed exemption.

16 SECTION 6. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 1556 of Title 6, unless there is
18 created a duplication in numbering, reads as follows:

19 A. In order to carry out the purposes of the Oklahoma Money
20 Transmission Modernization Act, the Commissioner may, subject to the
21 provisions of subsections A and B of Section 7 of this act:

22 1. Enter into agreements or relationships with other government
23 officials or federal and state regulatory agencies and regulatory
24 associations to improve efficiencies and reduce regulatory burden by

1 standardizing methods or procedures and sharing resources, records,
2 or related information obtained under this act;

3 2. Use, hire, contract, or employ analytical systems, methods,
4 or software to examine or investigate any person subject to this
5 act;

6 3. Accept from other state or federal government agencies or
7 officials licensing, examination, or investigation reports created
8 by such other state or federal government agencies or officials; and

9 4. Accept audit reports made by an independent certified public
10 accountant or other qualified third-party auditor for an applicant
11 or licensee and incorporate the audit report into any report of
12 examination or investigation.

13 B. The Commissioner shall have broad administrative authority
14 to:

15 1. Administer, interpret, and enforce this act;

16 2. Promulgate rules implementing this act; and

17 3. Recover the cost of administering and enforcing this act by
18 imposing and collecting proportionate and equitable fees and costs
19 associated with applications, examinations, investigations, and
20 other actions required for the purposes of this act.

21 SECTION 7. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 1557 of Title 6, unless there is
23 created a duplication in numbering, reads as follows:

1 A. Except as otherwise provided in subsection B of this
2 section, all information or reports obtained by the Commissioner
3 from an applicant, licensee, or authorized delegate, and all
4 information contained in or related to an examination,
5 investigation, operating report, or condition report prepared by, on
6 behalf of, or for the use of the Commissioner, or financial
7 statements, balance sheets, or authorized delegate information, are
8 confidential and are not subject to disclosure under the Oklahoma
9 Open Records Act.

10 B. The Commissioner may disclose information not otherwise
11 subject to disclosure under subsection A of this section to
12 representatives of state or federal agencies who agree in a record
13 that they will maintain the confidentiality of the information or
14 where the Commissioner finds that the release is reasonably
15 necessary for the protection and interest of the public in
16 accordance with the Oklahoma Open Records Act.

17 C. This section shall not prohibit the Commissioner from
18 disclosing to the public a list of all licensees or the aggregated
19 financial or transactional data concerning those licensees.

20 D. Information contained in the records of the Department that
21 is not confidential and may be made available to the public either
22 on the Department's website, upon receipt by the Department of a
23 written request, or in the NMLS shall include:
24

1 1. The name, business address, telephone number, and unique
2 identifier of a licensee;

3 2. The business address of a licensee's registered agent for
4 service;

5 3. The name, business address, and telephone number of all
6 authorized delegates;

7 4. The terms of or a copy of any bond filed by a licensee,
8 provided that confidential information, including, but not limited
9 to, prices and fees for such bond is redacted;

10 5. Copies of any nonconfidential final orders of the Department
11 relating to any violation of this act or regulations promulgated
12 pursuant to this act; and

13 6. Notice of the imposition of an administrative fine or
14 penalty under this act.

15 SECTION 8. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 1558 of Title 6, unless there is
17 created a duplication in numbering, reads as follows:

18 A. The Commissioner may conduct investigations in or outside
19 this state and the United States as the Commissioner considers
20 necessary or appropriate to administer and enforce the Oklahoma
21 Money Transmission Modernization Act.

22 B. For purposes of an investigation, examination, or other
23 proceeding under this act, the Commissioner may:

24 1. Administer oaths or cause oaths to be administered;

1 2. Subpoena witnesses;

2 3. Compel the attendance of witnesses;

3 4. Take evidence; and

4 5. Require the production of any document that the Commissioner
5 determines to be relevant to the inquiry.

6 C. If a person refuses to obey a subpoena, the District Court
7 of Oklahoma County, on application by the Commissioner, may issue an
8 order requiring the person to appear before the Commissioner and
9 produce documents or give evidence regarding the matter under
10 investigation.

11 D. The Commissioner may employ a person, request the Attorney
12 General, or request any other state, federal, or local law
13 enforcement agency to assist in enforcing this act.

14 E. The Commissioner may recover the reasonable costs incurred
15 in connection with an investigation conducted under this act from
16 the person that is the subject of the investigation.

17 SECTION 9. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 1559 of Title 6, unless there is
19 created a duplication in numbering, reads as follows:

20 A. The Commissioner may conduct an examination or investigation
21 of a licensee or authorized delegate or otherwise take independent
22 action authorized by this act or by a rule adopted or order issued
23 under this act as reasonably necessary or appropriate to administer
24 and enforce this act, regulations promulgated pursuant to this act,

1 and other applicable law, including the Bank Secrecy Act and the USA
2 PATRIOT Act. The Commissioner may:

3 1. Conduct an examination either on-site or off-site;

4 2. Conduct an examination in conjunction with an examination
5 conducted by representatives of other state agencies or agencies of
6 another state or of the federal government;

7 3. Accept the examination report of another state agency or an
8 agency of another state or of the federal government, or a report
9 prepared by an independent accounting firm, which on being accepted
10 is considered for all purposes as an official report of the
11 Commissioner; and

12 4. Summon and examine under oath a key individual or employee
13 of a licensee or authorized delegate and require the person to
14 produce records regarding any matter related to the condition and
15 business of the licensee or authorized delegate.

16 B. A licensee or authorized delegate shall provide, and the
17 Commissioner shall have full and complete access to, all records the
18 Commissioner may reasonably require to conduct a complete
19 examination. The records shall be provided at the location and in
20 the format specified by the Commissioner, provided, the Commissioner
21 may utilize multistate record production standards and examination
22 procedures when such standards reasonably achieve the requirements
23 of this section.

1 C. Unless otherwise directed by the Commissioner, a licensee
2 shall pay all costs reasonably incurred in connection with an
3 examination of the licensee or the licensee's authorized delegates.

4 SECTION 10. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 1560 of Title 6, unless there is
6 created a duplication in numbering, reads as follows:

7 A. To efficiently and effectively administer and enforce this
8 act and to minimize regulatory burden, the Commissioner shall be
9 authorized and encouraged to participate in multistate supervisory
10 processes established between states and coordinated through the
11 Conference of State Bank Supervisors, Money Transmitter Regulators
12 Association, and affiliates and successors thereof for all licensees
13 that hold licenses in this state and other states. As a participant
14 in multistate supervision, the Commissioner may:

15 1. Cooperate, coordinate, and share information with other
16 state and federal regulators in accordance with Section 7 of this
17 act;

18 2. Enter into written cooperation, coordination, or
19 information-sharing contracts or agreements with organizations the
20 membership of which is made up of state or federal governmental
21 agencies; and

22 3. Cooperate, coordinate, and share information with
23 organizations, the membership of which is made up of state or
24 federal governmental agencies, provided that the organizations agree

1 in writing to maintain the confidentiality and security of the
2 shared information in accordance with Section 7 of this act.

3 B. The Commissioner may not waive, and nothing in this section
4 shall constitute a waiver of, the Commissioner's authority to
5 conduct an examination or investigation or otherwise take
6 independent action authorized by this act or a rule adopted or order
7 issued under this act to enforce compliance with applicable state or
8 federal law.

9 C. A joint examination or investigation, or acceptance of an
10 examination or investigation report, shall not waive an examination
11 assessment provided for in this act.

12 SECTION 11. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 1561 of Title 6, unless there is
14 created a duplication in numbering, reads as follows:

15 A. In the event state money transmission jurisdiction is
16 conditioned on a federal law, any inconsistencies between a
17 provision of this act and the federal law governing money
18 transmission shall be governed by the applicable federal law to the
19 extent of the inconsistency.

20 B. In the event of any inconsistencies between this act and a
21 federal law that governs pursuant to this section, the Commissioner
22 may provide interpretive guidance that:

23 1. Identifies the inconsistency; and
24

1 2. Identifies the appropriate means of compliance with federal
2 law.

3 SECTION 12. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1562 of Title 6, unless there is
5 created a duplication in numbering, reads as follows:

6 A. A person may not engage in the business of money
7 transmission or advertise, solicit, or hold itself out as providing
8 money transmission unless the person is licensed under this act;

9 B. Subsection A of this section shall not apply to:

10 1. A person that is an authorized delegate of a person licensed
11 under this act acting within the scope of authority conferred by a
12 written contract with the licensee; or

13 2. A person exempt pursuant to Section 4 of this act and does
14 not engage in money transmission outside the scope of such
15 exemption.

16 C. A license issued under this act is not transferable or
17 assignable.

18 SECTION 13. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 1563 of Title 6, unless there is
20 created a duplication in numbering, reads as follows:

21 A. To establish consistent licensing between this state and
22 other states, the Commissioner shall be authorized and encouraged
23 to:
24

1 1. Implement all licensing provisions of this act in a manner
2 consistent with other states that have adopted this act or
3 multistate licensing processes; and

4 2. Participate in nationwide protocols for licensing
5 cooperation and coordination among state regulators provided that
6 such protocols are consistent with this act.

7 B. In order to fulfill the purposes of this act, the
8 Commissioner shall be authorized and encouraged to establish
9 relationships or contracts with NMLS or other entities designated by
10 NMLS to enable the Commissioner to:

11 1. Collect and maintain records;

12 2. Coordinate multistate licensing processes and supervision
13 processes;

14 3. Process fees; and

15 4. Facilitate communication between states and licensees or
16 other persons subject to this act.

17 C. The Commissioner shall be authorized and encouraged to
18 utilize NMLS for all aspects of licensing in accordance with this
19 act, including, but not limited to, license applications,
20 applications for acquisitions of control, surety bonds, reporting,
21 criminal history background checks, credit checks, fee processing,
22 and examinations.

23 D. The Commissioner shall be authorized and encouraged to
24 utilize NMLS forms, processes, and functionalities in accordance

1 with this act. In the event NMLS does not provide functionality,
2 forms, or processes for a provision of this act, the Commissioner
3 shall be authorized and encouraged to strive to implement the
4 requirements in a manner that facilitates uniformity with respect to
5 licensing, supervision, reporting, and regulation of licensees which
6 are licensed in multiple jurisdictions.

7 E. For the purpose of participating in the Nationwide
8 Multistate Licensing System and Registry, the Commissioner shall be
9 authorized to waive or modify, in whole or in part, by rule, policy,
10 or order, any or all of the requirements and to establish new
11 requirements as reasonably necessary to participate in the
12 Nationwide Multistate Licensing System and Registry.

13 SECTION 14. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 1564 of Title 6, unless there is
15 created a duplication in numbering, reads as follows:

16 A. Applicants for a license shall apply in a form and in a
17 medium as prescribed by the Commissioner. Each form shall contain
18 content as set forth by rule, policy, instruction, or procedure of
19 the Commissioner and may be changed or updated at the discretion of
20 the Commissioner to carry out the purposes of this act and maintain
21 consistency with NMLS licensing standards and practices. The
22 application must state or contain, as applicable:
23
24

1 1. The legal name and residential and business addresses of the
2 applicant and any fictitious or trade name used by the applicant in
3 conducting its business;

4 2. A list of any criminal convictions of the applicant and any
5 material litigation in which the applicant has been involved in the
6 ten-year period preceding the submission of the application;

7 3. A description of any money transmission previously provided
8 by the applicant and the money transmission the applicant seeks to
9 provide in this state;

10 4. A list of the applicant's proposed authorized delegates and
11 the locations in this state where the applicant and its authorized
12 delegates propose to engage in money transmission;

13 5. A list of other states in which the applicant is licensed to
14 engage in money transmission and any license revocations,
15 suspensions, or other disciplinary action taken against the
16 applicant in another state;

17 6. Information concerning any bankruptcy or receivership
18 proceedings affecting the applicant or a person in control of the
19 applicant;

20 7. A sample of a contract for authorized delegates, if
21 applicable;

22 8. A sample of a payment instrument or stored value, as
23 applicable;

1 9. The name and address of any federally insured depository
2 financial institution through which the applicant plans to conduct
3 money transmission; and

4 10. Any other information the Commissioner or NMLS reasonably
5 requires with respect to the applicant.

6 B. If an applicant is a corporation, limited liability company,
7 partnership, or other legal entity, the applicant shall also
8 provide:

9 1. The date of the applicant's incorporation or formation and
10 the state or country of incorporation or formation;

11 2. If applicable, a certificate of good standing from the state
12 or country in which the applicant is incorporated or formed;

13 3. A brief description of the structure or organization of the
14 applicant, including any parent corporations or subsidiaries of the
15 applicant, and whether any parent corporations or subsidiaries are
16 publicly traded;

17 4. The legal name, any fictitious or trade name, all business
18 and residential addresses, and the employment history, as
19 applicable, in the ten-year period preceding the submission of the
20 application of each key individual and person in control of the
21 applicant;

22 5. A list of any criminal convictions and material litigation
23 in which a person in control of the applicant that is not an
24

1 individual has been involved in the ten-year period preceding the
2 submission of the application;

3 6. A copy of audited financial statements of the applicant for
4 the most recent fiscal year and for the two-year period preceding
5 the submission of the application or, if determined to be acceptable
6 to the Commissioner, certified unaudited financial statements for
7 the most recent fiscal year or other period acceptable to the
8 Commissioner;

9 7. A certified copy of unaudited financial statements of the
10 applicant for the most recent fiscal quarter;

11 8. If the applicant is a publicly traded corporation, a copy of
12 the most recent report filed with the United States Securities and
13 Exchange Commission under Section 13 of the federal Securities
14 Exchange Act of 1934, 15 U.S.C., Section 78m, as amended;

15 9. If the applicant is a wholly owned subsidiary of:

- 16 a. a corporation publicly traded in the United States, a
17 copy of audited financial statements for the parent
18 corporation for the most recent fiscal year or a copy
19 of the parent corporation's most recent report filed
20 under Section 13 of the federal Securities Exchange
21 Act of 1934, 15 U.S.C., Section 78m, as amended, or
- 22 b. a corporation publicly traded outside the United
23 States, a copy of similar documentation filed with the
24

1 regulator of the parent corporation's domicile outside
2 the United States;

3 10. The name and address of the applicant's registered agent in
4 this state; and

5 11. Any other information the Commissioner reasonably requires
6 with respect to the applicant.

7 C. A nonrefundable application fee of Four Thousand Dollars
8 (\$4,000.00) and a nonrefundable license fee of Three Thousand
9 Dollars (\$3,000.00) shall accompany an application for a license
10 under this section.

11 D. The Commissioner may waive one or more requirements of
12 subsections A and B of this section or permit an applicant to submit
13 other information in lieu of the required information.

14 SECTION 15. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 1565 of Title 6, unless there is
16 created a duplication in numbering, reads as follows:

17 A. Any individual in control of a licensee or applicant, any
18 individual that seeks to acquire control of a licensee, and each key
19 individual shall furnish to the Commissioner through the NMLS the
20 following items:

21 1. The individual's fingerprints for purposes of a national
22 criminal history background check unless the person currently
23 resides outside of the United States and has resided outside of the
24 United States for the last ten (10) years; and

1 2. Personal history and experience, in a form and in a medium
2 prescribed by the Commissioner, to obtain the following:

- 3 a. an independent credit report from a consumer reporting
4 agency unless the individual does not have a Social
5 Security number, in which case, this requirement shall
6 be waived,
- 7 b. information related to any criminal convictions or
8 pending charges, and
- 9 c. information related to any regulatory or
10 administrative action and any civil litigation
11 involving claims of fraud, misrepresentation,
12 conversion, mismanagement of funds, breach of
13 fiduciary duty, or breach of contract.

14 B. If the individual has resided outside of the United States
15 at any time in the last ten (10) years, the individual shall also
16 provide an investigative background report prepared by an
17 independent search firm that meets the following requirements:

18 1. The search firm shall:

- 19 a. demonstrate that it has sufficient knowledge and
20 resources and employs accepted and reasonable
21 methodologies to conduct the research for the
22 background report, and
- 23 b. not be affiliated with or have an interest in the
24 individual it is researching; and

1 2. The investigative background report shall be written in the
2 English language and shall contain the following:

- 3 a. if available in the individual's current jurisdiction
4 of residency, a comprehensive credit report, or any
5 equivalent information obtained or generated by the
6 independent search firm to accomplish such report,
7 including a search of the court data in the countries,
8 provinces, states, cities, towns, and contiguous areas
9 where the individual resided and worked,
- 10 b. criminal records information for the past ten (10)
11 years, including, but not limited to, felonies,
12 misdemeanors, or similar convictions for violations of
13 law in the countries, provinces, states, cities,
14 towns, and contiguous areas where the individual
15 resided and worked,
- 16 c. employment history,
- 17 d. media history, including an electronic search of
18 national and local publications, wire services, and
19 business applications, and
- 20 e. financial-services-related regulatory history,
21 including, but not limited to, money transmission,
22 securities, banking, insurance, and mortgage-related
23 industries.
- 24

SECTION 16. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1566 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. When an application for an original license under this act is determined by the Commissioner to include all the items and address all the matters that are required, the application shall be deemed complete and the Commissioner shall notify the applicant in writing of the date on which the application was deemed complete, and:

1. The Commissioner shall approve or deny the application within one hundred eighty (180) days after the completion date; or

2. The Commissioner may extend the review period at the Commissioner's discretion.

B. A determination by the Commissioner that an application is complete and is accepted for processing shall mean only that the application, on its face, appears to include all of the items, including the criminal background check response, and address all of the matters that are required. A determination by the Commissioner that an application is complete and accepted for processing shall not be considered a determination of the application or of the sufficiency of the information provided.

C. When an application is filed and considered complete, the Commissioner shall investigate the applicant's financial condition and responsibility, financial and business experience, character,

1 and general fitness. The Commissioner may conduct an on-site
2 investigation of the applicant. The applicant shall pay the
3 reasonable cost of any on-site investigation. The Commissioner may
4 issue a license to an applicant under this section if the
5 Commissioner finds all the following conditions have been fulfilled:

6 1. The applicant has complied with Sections 14 and 15 of this
7 act; and

8 2. The financial condition and responsibility, financial and
9 business experience, competence, character, and general fitness of
10 the applicant, and the competence, experience, character, and
11 general fitness of the key individuals and persons in control of the
12 applicant, indicate that it is in the best interest of the public to
13 permit the applicant to engage in money transmission.

14 D. If an applicant avails itself or is otherwise subject to a
15 multistate licensing process:

16 1. The Commissioner shall be authorized and encouraged to
17 accept the investigation results of a lead investigative state for
18 the purpose of subsection C of this section if the lead
19 investigative state has sufficient staffing, expertise, and meets
20 the minimum standards; or

21 2. If Oklahoma is a lead investigative state, the Commissioner
22 shall be authorized and encouraged to investigate the applicant
23 pursuant to subsection C of this section and the timeframes
24 established by agreement through the multistate licensing process;

1 provided, however, in no case shall such timeframe be noncompliant
2 with the application period provided in paragraph 1 of subsection A
3 of this section.

4 E. The Commissioner shall issue a formal written notice of the
5 denial of a license application within thirty (30) days of the
6 decision to deny the application. The Commissioner shall set forth
7 in the notice of denial the specific reasons for the denial of the
8 application. If an applicant whose application is denied by the
9 Commissioner under this section chooses to appeal the denial, the
10 applicant shall file an appeal with the Oklahoma State Banking Board
11 within fifteen (15) calendar days after the date of the written
12 notice of the denial.

13 F. The Commissioner may deny a license application if the
14 applicant has not received approval to operate as a money
15 transmitter in the state in which it is organized and the state in
16 which its main office is located. The Commissioner may deny a
17 license application based on the findings of another state.

18 G. The initial license term shall begin on the day the
19 application is approved. The license shall expire on December 31 of
20 the year in which the license term began, unless the initial license
21 date is between November 1 and December 31, in which instance the
22 initial license term shall run through December 31 of the following
23 year.

1 SECTION 17. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1567 of Title 6, unless there is
3 created a duplication in numbering, reads as follows:

4 A. A license under this act shall be renewed annually. An
5 annual renewal fee of Three Thousand Dollars (\$3,000.00) shall be
6 paid no more than sixty (60) days before the license expiration.
7 The renewal term shall be for a period of one (1) year and shall
8 begin on January 1 of each year after the initial license term and
9 shall expire on December 31 of the year the renewal term begins.

10 B. A licensee shall submit a renewal report with the renewal
11 fee, in a form and medium prescribed by the Commissioner. The
12 renewal report shall state or contain a description of each material
13 change in information from the original license application which
14 has not been reported to the Commissioner.

15 C. The Commissioner may, for good cause, grant an extension of
16 the renewal date.

17 D. The Commissioner shall be authorized and encouraged to
18 utilize the NMLS to process license renewals, provided that such
19 functionality is consistent with this section.

20 SECTION 18. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 1568 of Title 6, unless there is
22 created a duplication in numbering, reads as follows:

23 A. If a licensee does not continue to meet the qualifications
24 or satisfy the requirements that apply to an applicant for a new

1 money transmission license, the Commissioner may suspend or revoke a
2 license in accordance with the procedures established by this act or
3 other applicable state law for such suspension or revocation.

4 B. An applicant for a money transmission license must
5 demonstrate that it meets or will meet, and a money transmission
6 licensee shall at all times meet, the requirements in Sections 33,
7 34, and 35 of this act.

8 SECTION 19. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 1569 of Title 6, unless there is
10 created a duplication in numbering, reads as follows:

11 A. Any person, or group of persons acting in concert, seeking
12 to acquire control of a licensee shall obtain the written approval
13 of the Commissioner prior to acquiring control. An individual shall
14 not be deemed to acquire control of a licensee and shall not be
15 subject to the acquisition of control provisions when that
16 individual becomes a key individual in the ordinary course of
17 business.

18 B. A person, or group of persons acting in concert, seeking to
19 acquire control of a licensee shall, in cooperation with the
20 licensee:

21 1. Submit an application in a form and medium prescribed by the
22 Commissioner; and

23 2. Submit a nonrefundable fee of Four Thousand Dollars
24 (\$4,000.00) with the request for approval.

1 C. Upon request, the Commissioner may permit a licensee or the
2 person, or group of persons acting in concert, to submit some or all
3 of the information required by the Commissioner pursuant to
4 paragraph 1 of subsection B of this section without using the NMLS.

5 D. The application required by paragraph 1 of subsection B of
6 this section shall include information required by Section 15 of
7 this act for any new key individuals who have not previously
8 completed the requirements of Section 15 of this act for a licensee.

9 E. 1. When an application for acquisition of control under
10 this section appears to include all the items and address all
11 matters that are required, the application shall be considered
12 complete and the Commissioner shall promptly notify the applicant in
13 a record of the date on which the application was determined to be
14 complete and:

15 a. the Commissioner shall approve or deny the application
16 within ninety (90) days after the completion date, or

17 b. the Commissioner may extend the review period upon
18 notice to the applicant;

19 2. Provided, however, the Commissioner may deny an application
20 for acquisition of control if the applicant has not received
21 approval regarding the acquisition of control in the state in which
22 it is organized or the state in which its main office is located.

23 3. If the application is not approved or denied before the
24 ninety-first day after the completion date, and if the applicant has

1 received approval regarding the acquisition of control in the state
2 in which it is organized and the state in which its main office is
3 located, the application shall be approved and the person or group
4 of persons acting in concert shall not be prohibited from acquiring
5 control.

6 F. A determination by the Commissioner that an application is
7 complete and is accepted for processing shall mean only that the
8 application, on its face, appears to include all of the items and
9 address all of the matters that are required. A determination by
10 the Commissioner that an application is complete and is accepted for
11 processing shall not mean an assessment of the substance of the
12 application or of the sufficiency of the information provided.

13 G. When an application is filed and considered complete under
14 subsection E of this section, the Commissioner shall investigate the
15 financial condition and responsibility, financial and business
16 experience, character, and general fitness of the person, or group
17 of persons acting in concert, seeking to acquire control. The
18 Commissioner may approve an acquisition of control pursuant to this
19 section if the Commissioner finds that all of the following
20 conditions have been fulfilled:

21 1. The requirements of subsections B and D of this section have
22 been met, as applicable; and

23 2. The financial condition and responsibility, financial and
24 business experience, competence, character, and general fitness of

1 the person, or group of persons acting in concert, seeking to
2 acquire control, and the competence, experience, character, and
3 general fitness of the key individuals and persons that would be in
4 control of the licensee after the acquisition of control indicate
5 that it is in the interest of the public to permit the person, or
6 group of persons acting in concert, to control the licensee.

7 H. If an applicant avails itself or is otherwise subject to a
8 multistate licensing process:

9 1. The Commissioner shall be authorized and encouraged to
10 accept the investigation results of a lead investigative state for
11 the purpose of subsection G of this section if the lead
12 investigative state has sufficient staffing, expertise, and minimum
13 standards; or

14 2. If Oklahoma is a lead investigative state, the Commissioner
15 shall be authorized and encouraged to investigate the applicant
16 pursuant to subsection G of this section and the timeframes
17 established by agreement through the multistate licensing process.

18 I. The Commissioner shall issue a formal written notice of the
19 denial of an application to acquire control within thirty (30) days
20 of the decision to deny the application. The Commissioner shall set
21 forth in the notice of denial the specific reasons for the denial of
22 the application. If an applicant whose application is denied by the
23 Commissioner under this section chooses to appeal the denial, the
24 applicant shall file an appeal with the Oklahoma State Banking Board

1 within fifteen (15) calendar days after the date of the written
2 notice of the denial.

3 J. The requirements of subsections A and B of this section
4 shall not apply to any of the following:

5 1. A person who acts as a proxy for the sole purpose of voting
6 at a designated meeting of the shareholders or holders of voting
7 shares or voting interests of a licensee or a person in control of a
8 licensee;

9 2. A person who acquires control of a licensee by devise or
10 descent;

11 3. A person who acquires control of a licensee as a personal
12 representative, custodian, guardian, conservator, or trustee, or as
13 an officer appointed by a court of competent jurisdiction or by
14 operation of law;

15 4. A person who is exempt under paragraph 7 of Section 4 of
16 this act;

17 5. A person who the Commissioner determines is not subject to
18 subsection A of this section based on the public interest;

19 6. A public offering of securities of a licensee or a person in
20 control of a licensee; or

21 7. An internal reorganization of a person in control of the
22 licensee where the ultimate person in control of the licensee
23 remains the same.
24

1 K. Persons in paragraphs 2, 3, 4, 6, and 7 of subsection J of
2 this section, in cooperation with the licensee, shall notify the
3 Commissioner within fifteen (15) days after the acquisition of
4 control.

5 L. 1. The requirements of subsections A and B of this section
6 shall not apply to a person who has complied with and received
7 approval to engage in money transmission under this act or was
8 identified as a person in control in a prior application filed with
9 and approved by the Commissioner or by an MSB-accredited state
10 pursuant to a multistate licensing process, provided that:

11 a. the person has not had a license revoked or suspended
12 or controlled a licensee that has had a license
13 revoked or suspended while the person was in control
14 of the licensee in the previous five (5) years,

15 b. if the person is a licensee, the person is well
16 managed and has received at least a satisfactory
17 rating for compliance at its most recent examination
18 by an MSB-accredited state, if such a rating was
19 given,

20 c. the licensee to be acquired is projected to meet the
21 requirements of Sections 33, 34, and 35 of this act
22 after the acquisition of control is completed, and if
23 the person acquiring control is a licensee, that
24 licensee is also projected to meet the requirements of

1 Sections 33, 34, and 35 of this act after the
2 acquisition of control is completed,

- 3 d. the licensee to be acquired will not implement any
4 material changes to its business plan as a result of
5 the acquisition of control, and if the person
6 acquiring control is a licensee, that licensee also
7 will not implement any material changes to its
8 business plan as a result of the acquisition of
9 control, and
- 10 e. the person provides notice of the acquisition in
11 cooperation with the licensee and attests to
12 subparagraphs a, b, c, and d of paragraph 1 of
13 subsection L of this section in a form and in a medium
14 prescribed by the Commissioner.

15 2. If the notice is not disapproved within thirty (30) days
16 after the date on which the notice was determined to be complete,
17 the notice shall be deemed approved.

18 M. Before filing an application for approval to acquire control
19 of a licensee, a person may request in writing a determination from
20 the Commissioner as to whether the person would be considered a
21 person in control of a licensee upon consummation of a proposed
22 transaction. If the Commissioner determines that the person would
23 not be a person in control of a licensee, the proposed person and
24

1 transaction shall not be subject to the requirements of subsections
2 A and B of this section.

3 N. If a multistate licensing process includes a determination
4 pursuant to subsection M of this section and an applicant avails
5 itself or is otherwise subject to the multistate licensing process:

6 1. The Commissioner shall be authorized and encouraged to
7 accept the control determination of a lead investigative state with
8 sufficient staffing, expertise, and minimum standards for the
9 purpose of subsection M of this section; or

10 2. If Oklahoma is a lead investigative state, the Commissioner
11 shall be authorized and encouraged to investigate the applicant
12 pursuant to subsection M of this section and the timeframes
13 established by agreement through the multistate licensing process.

14 SECTION 20. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 1570 of Title 6, unless there is
16 created a duplication in numbering, reads as follows:

17 A. A licensee adding or replacing any key individual shall:

18 1. Provide notice in a manner prescribed by the Commissioner
19 within fifteen (15) days after the effective date of the key
20 individual's appointment; and

21 2. Provide information as required by Section 15 of this act
22 within forty-five (45) days of the effective date.

23 B. Within ninety (90) days of the date on which the notice
24 provided pursuant to subsection A of this section was determined to

1 be complete, the Commissioner may issue a notice of disapproval of a
2 key individual if the competence, experience, character, or
3 integrity of the individual would not be in the best interests of
4 the public or the customers of the licensee to permit the individual
5 to be a key individual of such licensee.

6 C. A notice of disapproval shall contain a statement of the
7 basis for disapproval and shall be sent to the licensee and the
8 disapproved individual. If a licensee chooses to appeal a notice of
9 disapproval, the licensee shall file an appeal with the Oklahoma
10 State Banking Board within fifteen (15) calendar days after the date
11 of the written notice of the disapproval.

12 D. If the notice provided pursuant to subsection A of this
13 section is not disapproved within one hundred twenty (120) days
14 after the date on which the notice was determined to be complete,
15 the key individual shall be deemed approved, unless the Commissioner
16 has notified the licensee that the review time has been extended.

17 E. If a multistate licensing process includes a key individual
18 notice review and disapproval process pursuant to this section and
19 the licensee avails itself or is otherwise subject to the multistate
20 licensing process:

21 1. The Commissioner shall be authorized and encouraged to
22 accept the determination of another state if the investigating state
23 has sufficient staffing, expertise, and minimum standards for the
24 purpose of this section; or

1 2. If Oklahoma is a lead investigative state, the Commissioner
2 shall be authorized and encouraged to investigate the applicant
3 pursuant to subsection B of this section and the timeframes
4 established by agreement through the multistate licensing process.

5 SECTION 21. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 1571 of Title 6, unless there is
7 created a duplication in numbering, reads as follows:

8 A. Each licensee shall submit a report of condition within
9 forty-five (45) days of the end of the calendar quarter, or within
10 any extended time as the Commissioner may prescribe.

11 B. The report of condition shall include:

12 1. Financial information at the licensee level;

13 2. Nationwide and state-specific money transmission transaction
14 information in every jurisdiction in the United States where the
15 licensee is licensed to engage in money transmission;

16 3. Permissible investments report;

17 4. Transaction destination country reporting for money received
18 for transmission, if applicable; and

19 5. Any other information the Commissioner reasonably requires
20 with respect to the licensee. The Commissioner shall be authorized
21 and encouraged to utilize NMLS for the submission of the report
22 required by this section and is authorized to change or update as
23 necessary the requirements of this section to carry out the purposes
24 of this act and maintain consistency with NMLS reporting.

1 C. The information required by paragraph 4 of subsection B of
2 this section shall only be included in a report of condition
3 submitted within forty-five (45) days of the end of the fourth
4 calendar quarter.

5 SECTION 22. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 1572 of Title 6, unless there is
7 created a duplication in numbering, reads as follows:

8 A. Each licensee shall, within ninety (90) days after the end
9 of each fiscal year, or within any extended time as the Commissioner
10 may prescribe, file with the Commissioner:

11 1. An audited financial statement of the licensee for the
12 fiscal year prepared in accordance with United States generally
13 accepted accounting principles; and

14 2. Any other information as the Commissioner may reasonably
15 require.

16 B. The audited financial statements shall be prepared by an
17 independent certified public accountant or independent public
18 accountant who is satisfactory to the Commissioner.

19 C. The audited financial statements shall include or be
20 accompanied by a certificate of opinion of the independent certified
21 public accountant or independent public accountant that is
22 satisfactory in form and content to the Commissioner. If the
23 certificate or opinion is qualified, the Commissioner may order the
24 licensee to take any action as the Commissioner may find necessary

1 to enable the independent or certified public accountant or
2 independent public accountant to remove the qualification.

3 SECTION 23. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1573 of Title 6, unless there is
5 created a duplication in numbering, reads as follows:

6 A. Each licensee shall submit a report of authorized delegates
7 within forty-five (45) days of the end of the calendar quarter. The
8 Commissioner shall be authorized and encouraged to utilize the NMLS
9 for the submission of the report required by this section provided
10 that such functionality is consistent with the requirements of this
11 section.

12 B. The authorized delegate report shall include, at a minimum,
13 each authorized delegate's:

- 14 1. Company legal name;
- 15 2. Taxpayer employer identification number;
- 16 3. Principal provider identifier;
- 17 4. Physical address;
- 18 5. Mailing address;
- 19 6. Any business conducted in other states;
- 20 7. Any fictitious or trade name;
- 21 8. Contact person name, phone number, and email;
- 22 9. Start date as licensee's authorized delegate;
- 23 10. End date acting as licensee's authorized delegate, if
24 applicable;

1 11. Any applicable court orders; and

2 12. Any other information the Commissioner reasonably requires
3 with respect to the authorized delegate.

4 SECTION 24. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 1574 of Title 6, unless there is
6 created a duplication in numbering, reads as follows:

7 A. A licensee shall file a report with the Commissioner within
8 one (1) business day of the licensee becoming aware of the
9 occurrence of any of the following events:

10 1. The filing of a petition by or against the licensee under
11 the United States Bankruptcy Code, 11 U.S.C., Section 101 et seq.,
12 as amended, for bankruptcy or reorganization;

13 2. The filing of a petition by or against the licensee for
14 receivership, the commencement of any other judicial or
15 administrative proceeding for its dissolution or reorganization, or
16 the making of a general assignment for the benefit of its creditors;
17 or

18 3. The commencement of a proceeding to revoke or suspend its
19 license in a state or country in which the licensee engages in
20 business or is licensed.

21 B. A licensee shall file a report with the Commissioner within
22 three (3) business days of the licensee becoming aware of the
23 occurrence of a felony charge or conviction of:

24 1. The licensee or a key individual;

1 2. A person in control of the licensee; or

2 3. An authorized delegate.

3 SECTION 25. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1575 of Title 6, unless there is
5 created a duplication in numbering, reads as follows:

6 A licensee and an authorized delegate shall file all reports
7 required by federal currency reporting, record-keeping, and
8 suspicious activity reporting requirements as set forth in the Bank
9 Secrecy Act and other federal and state laws pertaining to money
10 laundering. The timely filing of a complete and accurate report
11 required under this section with the appropriate federal agency
12 shall be deemed compliant with the requirements of this section.

13 SECTION 26. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 1576 of Title 6, unless there is
15 created a duplication in numbering, reads as follows:

16 A. A licensee shall maintain the following records, for
17 determining its compliance with this act, for at least five (5)
18 years:

19 1. A record of each outstanding money transmission obligation
20 sold;

21 2. A general ledger posted at least monthly containing all
22 asset, liability, capital, income, and expense accounts;

23 3. Bank statements and bank reconciliation records;

24 4. Records of outstanding money transmission obligations;

1 5. Records of each outstanding money transmission obligation
2 paid within the five-year period;

3 6. A list of the last-known names and addresses of all of the
4 licensee's authorized delegates; and

5 7. Any other records the Commissioner reasonably requires.

6 B. The items specified in this section may be maintained in any
7 form of record.

8 C. Records specified in this section may be maintained outside
9 this state if the records are made accessible to the Commissioner
10 within seven (7) business days after a request for the records is
11 received.

12 D. All records maintained by the licensee as required in this
13 section shall be open to inspection by the Commissioner pursuant to
14 subsection A of Section 7 of this act.

15 SECTION 27. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 1577 of Title 6, unless there is
17 created a duplication in numbering, reads as follows:

18 A. As used in this section, "remit" means to make direct
19 payments of money to a licensee or its representative authorized to
20 receive money or to deposit money in a bank in an account specified
21 by the licensee.

22 B. Before a licensee shall be authorized to conduct business
23 through an authorized delegate or allow a person to act as the
24 licensee's authorized delegate, the licensee shall:

1 1. Adopt, and update as necessary, written policies and
2 procedures reasonably designed to ensure that the licensee's
3 authorized delegates comply with applicable state and federal law;

4 2. Enter into a written contract that complies with subsection
5 D of this section; and

6 3. Conduct a reasonable risk-based background investigation
7 sufficient for the licensee to determine whether the authorized
8 delegate has complied, and will likely comply, with applicable state
9 and federal law.

10 C. An authorized delegate shall operate in full compliance with
11 this act.

12 D. The written contract required by subsection B of this
13 section shall be signed by the licensee and the authorized delegate
14 and, at a minimum, shall:

15 1. Appoint the person signing the contract as the licensee's
16 authorized delegate with the authority to conduct money transmission
17 on behalf of the licensee;

18 2. Set forth the nature and scope of the relationship between
19 the licensee and the authorized delegate and the respective rights
20 and responsibilities of both parties;

21 3. Require the authorized delegate to agree to fully comply
22 with all applicable state and federal laws, rules, and regulations
23 pertaining to money transmission, including this act and any
24

1 regulations promulgated under this act and relevant provisions of
2 the Bank Secrecy Act and the USA PATRIOT Act;

3 4. Require the authorized delegate to remit and handle money
4 and monetary value in accordance with the terms of the contract
5 between the licensee and the authorized delegate;

6 5. Impose a trust on money and monetary value net of fees
7 received for money transmission for the benefit of the licensee;

8 6. Require the authorized delegate to prepare and maintain
9 records as required by this act and any regulations promulgated
10 under this act or as reasonably requested by the Commissioner;

11 7. Acknowledge that the authorized delegate consents to
12 examination or investigation by the Commissioner;

13 8. State that the licensee is subject to regulation by the
14 Commissioner and that, as part of that regulation, the Commissioner
15 may suspend or revoke an authorized delegate designation or require
16 the licensee to terminate an authorized delegate designation; and

17 9. Acknowledge receipt of the written policies and procedures
18 required under paragraph 1 of subsection B of this section.

19 E. If the licensee's license is suspended, revoked,
20 surrendered, or expired, the licensee shall, within five (5)
21 business days, provide documentation to the Commissioner that the
22 licensee has notified all applicable authorized delegates of the
23 licensee whose names are in a record filed with the Commissioner of
24 the suspension, revocation, surrender, or expiration of a license.

1 Upon suspension, revocation, surrender, or expiration of a license,
2 applicable authorized delegates shall immediately cease to provide
3 money transmission as an authorized delegate of the licensee.

4 F. An authorized delegate of a licensee holds in trust for the
5 benefit of the licensee all money net of fees received from money
6 transmission. If any authorized delegate commingles any funds
7 received from money transmission with any other funds or property
8 owned or controlled by the authorized delegate, all commingled funds
9 and other property shall be considered held in trust in favor of the
10 licensee in an amount equal to the amount of money net of fees
11 received from money transmission.

12 G. An authorized delegate may not use a subdelegate to conduct
13 money transmission on behalf of a licensee.

14 SECTION 28. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 1578 of Title 6, unless there is
16 created a duplication in numbering, reads as follows:

17 A person shall not engage in the business of money transmission
18 on behalf of a person not licensed under this act or not exempt
19 pursuant to Section 4 of this act. A person who engages in such
20 activity and provides money transmissions to the same extent as if
21 the person were a licensee shall be jointly and severally liable
22 with the unlicensed or nonexempt person. Any business for which a
23 license is required under this act that is conducted by an
24 authorized delegate outside the scope of authority conferred in the

1 contract between the authorized delegate and the licensee shall be
2 deemed an unlicensed activity.

3 SECTION 29. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1579 of Title 6, unless there is
5 created a duplication in numbering, reads as follows:

6 A. Every licensee shall forward all money received for
7 transmission in accordance with the terms of the agreement between
8 the licensee and the sender unless the licensee has a reasonable
9 belief or a reasonable basis to believe that the sender may be a
10 victim of fraud or that a crime or violation of law, rule, or
11 regulation has occurred, is occurring, or may occur.

12 B. If a licensee fails to forward money received for
13 transmission in accordance with this section, the licensee shall
14 respond to inquiries by the sender with the reason for the failure
15 unless providing a response would violate a state or federal law,
16 rule, or regulation.

17 SECTION 30. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 1580 of Title 6, unless there is
19 created a duplication in numbering, reads as follows:

20 A. This section shall not apply to:

21 1. Money received for transmission subject to the federal
22 Remittance Rule, 12 C.F.R., Part 1005, Subpart B, as amended; or
23
24

1 2. Money received for transmission pursuant to a written
2 agreement between the licensee and payee to process payments for
3 goods or services provided by the payee.

4 B. Every licensee shall issue a refund to the sender within ten
5 (10) days of receipt of the sender's written request for a refund of
6 any and all money received for transmission unless any of the
7 following occurs:

8 1. The money has been forwarded within ten (10) days of the
9 date on which the money was received for transmission;

10 2. Instructions have been given committing an equivalent amount
11 of money to the person designated by the sender within ten (10) days
12 of the date on which the money was received for transmission;

13 3. The agreement between the licensee and the sender instructs
14 the licensee to forward the money at a time that is beyond ten (10)
15 days of the date on which the money was received for transmission.
16 If funds have not yet been forwarded in accordance with the terms of
17 the agreement between the licensee and the sender, the licensee
18 shall issue a refund in accordance with the provisions of this
19 section;

20 4. The refund is requested for a transaction that the licensee
21 has not completed based on a reasonable belief or a reasonable basis
22 to believe that a crime or violation of law, rule, or regulation has
23 occurred, is occurring, or may occur; or

24 5. The refund request does not enable the licensee to:

1 a. identify the sender's name and address or telephone
2 number, or

3 b. identify the particular transaction to be refunded, in
4 the event the sender has multiple transactions
5 outstanding.

6 SECTION 31. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 1581 of Title 6, unless there is
8 created a duplication in numbering, reads as follows:

9 A. This section shall not apply to:

10 1. Money received for transmission subject to the federal
11 Remittance Rule, 12 C.F.R., Part 1005, Subpart B, as amended;

12 2. Money received for transmission that is not primarily for
13 personal, family, or household purposes;

14 3. Money received for transmission pursuant to a written
15 agreement between the licensee and payee to process payments for
16 goods or services provided by the payee; or

17 4. Payroll processing services.

18 B. For purposes of this section "receipt" means a paper
19 receipt, electronic record, or other written confirmation. For a
20 transaction conducted in person, the receipt may be provided
21 electronically if the sender requests or agrees to receive an
22 electronic receipt. For a transaction conducted electronically or
23 by phone, a receipt may be provided electronically. All electronic
24 receipts shall be provided in a retainable form.

1 C. 1. Every licensee or its authorized delegate shall provide
2 the sender a receipt for money received for transmission. The
3 receipt shall contain the following information, as applicable:

- 4 a. the name of the sender,
- 5 b. the name of the designated recipient,
- 6 c. the date of the transaction,
- 7 d. the unique transaction or identification number,
- 8 e. the name of the licensee, NMLS Unique ID, the
9 licensee's business address, and the licensee's
10 customer service telephone number,
- 11 f. the amount of the transaction in United States
12 dollars,
- 13 g. any fee charged by the licensee to the sender for the
14 transaction, and
- 15 h. any taxes collected by the licensee from the sender
16 for the transaction.

17 2. The receipt required by this section shall be in English and
18 in the language principally used by the licensee or authorized
19 delegate to advertise, solicit, or negotiate, either orally or in
20 writing, for a transaction conducted in person, electronically, or
21 by phone, if other than English.

22 3. Nothing in this section shall affect or eliminate the
23 disclosures required to be provided under Section 1520.1 of Title 6
24

1 of the Oklahoma Statutes in connection with digital asset kiosk
2 transactions.

3 SECTION 32. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1582 of Title 6, unless there is
5 created a duplication in numbering, reads as follows:

6 A. A licensee that provides payroll processing services shall:

7 1. Issue reports to clients detailing client payroll
8 obligations in advance of the payroll funds being deducted from an
9 account; and

10 2. After the funds have been deducted from the account, make
11 worker paystubs or equivalent statements available to workers.

12 B. This section shall not apply to a licensee providing payroll
13 processing services where the licensee's client designates the
14 intended recipients to the licensee and is responsible for providing
15 the information required by paragraph 2 of subsection A of this
16 section.

17 SECTION 33. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 1583 of Title 6, unless there is
19 created a duplication in numbering, reads as follows:

20 A. A licensee under this act shall maintain at all times a
21 tangible net worth of the greater of One Hundred Thousand Dollars
22 (\$100,000.00) or three percent (3%) of total assets for the first
23 One Hundred Million Dollars (\$100,000,000.00), two percent (2%) of
24 additional assets for One Hundred Million Dollars (\$100,000,000.00)

1 to One Billion Dollars (\$1,000,000,000.00), and one-half of a
2 percent (1/2%) of additional assets for over One Billion Dollars
3 (\$1,000,000,000.00).

4 B. Tangible net worth shall be demonstrated at initial
5 application by the applicant's most recent audited or unaudited
6 financial statements pursuant to paragraph 6 of subsection B of
7 Section 14 of this act.

8 C. Notwithstanding the foregoing provisions of this section,
9 the Commissioner shall have the authority, for good cause shown, to
10 exempt, in part or in whole, any applicant or licensee from the
11 requirements of this section.

12 SECTION 34. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 1584 of Title 6, unless there is
14 created a duplication in numbering, reads as follows:

15 A. An applicant for a money transmission license shall provide,
16 and a licensee at all times shall maintain, security consisting of a
17 surety bond in a form satisfactory to the Commissioner or, with the
18 Commissioner's approval, a deposit instead of a bond in accordance
19 with this section.

20 B. The amount of the required security shall be no less than
21 Five Hundred Thousand Dollars (\$500,000.00) for applicants and
22 licensees that operate digital asset kiosks or provide services
23 related to digital assets.

24

1 C. If an applicant or licensee does not operate digital asset
2 kiosks or provide services related to digital assets, the amount of
3 the required security shall be:

4 1. The greater of Two Hundred Thousand Dollars (\$200,000.00) or
5 an amount equal to one hundred percent (100%) of the licensee's
6 average daily money transmission liability in this state calculated
7 for the most recently completed three-month period, up to a maximum
8 of Five Hundred Thousand Dollars (\$500,000.00); or

9 2. In the event that the licensee's tangible net worth exceeds
10 ten percent (10%) of total assets, the licensee shall maintain a
11 surety bond of Two Hundred Thousand Dollars (\$200,000.00).

12 D. A licensee may exceed the maximum required bond amount
13 pursuant to paragraph 5 of subsection A of Section 36 of this act.

14 E. The Commissioner may increase the amount of security
15 required to a maximum of One Million Dollars (\$1,000,000.00) if the
16 financial condition of a licensee so requires, as evidenced by
17 reduction of net worth, financial losses, or other relevant
18 criteria.

19 SECTION 35. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 1585 of Title 6, unless there is
21 created a duplication in numbering, reads as follows:

22 A. A licensee shall maintain at all times permissible
23 investments that have a market value, computed in accordance with
24 United States generally accepted accounting principles, of not less

1 than the aggregate amount of all its outstanding money transmission
2 obligations.

3 B. Except for permissible investments enumerated in subsection
4 A of Section 36 of this act, the Commissioner, with respect to any
5 licensee, may by rule or order limit the extent to which a specific
6 investment maintained by a licensee within a class of permissible
7 investments may be considered a permissible investment, if the
8 specific investment represents undue risk to customers, not
9 reflected in the market value of investments.

10 C. Permissible investments, even if commingled with other
11 assets of the licensee, shall be held in trust for the benefit of
12 the purchasers and holders of the licensee's outstanding money
13 transmission obligations in the event of insolvency, the filing of a
14 petition by or against the licensee for bankruptcy or reorganization
15 under the United States Bankruptcy Code, 11 U.S.C., Section 101 et
16 seq., as amended, the filing of a petition by or against the
17 licensee for receivership, the commencement of any other judicial or
18 administrative proceeding for its dissolution or reorganization, or
19 in the event of an action by a creditor against the licensee who is
20 not a beneficiary of the trust. No permissible investments
21 impressed with a trust pursuant to this section shall be subject to
22 attachment, levy of execution, or sequestration by order of any
23 court, except for a beneficiary of this statutory trust.

1 D. Upon the establishment of a trust in accordance with
2 subsection C of this section, or when any funds are drawn on a
3 letter of credit pursuant to paragraph 4 of subsection A of Section
4 36 of this act, the Commissioner shall notify the applicable
5 regulator of each state in which the licensee is licensed to engage
6 in money transmission, if any, of the establishment of the trust or
7 the funds drawn on the letter of credit, as applicable. Notice
8 shall be deemed satisfied if performed pursuant to a multistate
9 agreement or through the NMLS. Funds drawn on a letter of credit,
10 and any other permissible investments held in trust for the benefit
11 of the purchasers and holders of the licensee's outstanding money
12 transmission obligations, shall be deemed held in trust for the
13 benefit of such purchasers and holders on a pro rata and equitable
14 basis in accordance with laws pursuant to which permissible
15 investments are required to be held in this state, and other states,
16 as applicable. Any statutory trust established hereunder shall be
17 terminated upon extinguishment of all the licensee's outstanding
18 money transmission obligations.

19 E. The Commissioner, by rule, policy, or order, may allow other
20 types of investments that he or she determines are of sufficient
21 liquidity and quality to be a permissible investment. The
22 Commissioner shall be authorized to participate in efforts with
23 other state regulators to determine what other types of investments
24

1 are of sufficient liquidity and quality to be a permissible
2 investment.

3 SECTION 36. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1586 of Title 6, unless there is
5 created a duplication in numbering, reads as follows:

6 A. The following investments are permissible under Section 35
7 of this act:

8 1. Cash including demand deposits, savings deposits, and funds
9 in such accounts held for the benefit of the licensee's customers in
10 a federally insured depository financial institution, and cash
11 equivalents including Automated Clearing House (ACH) items in
12 transit to the licensee and ACH items or international wires in
13 transit to a payee, cash in transit via armored car, cash in smart
14 safes, cash in licensee-owned locations, debit-card- or credit-card-
15 funded transmission receivables owed by any bank, or money market
16 mutual funds rated AAA by S&P Global Ratings, or the equivalent from
17 any eligible rating service;

18 2. Certificates of deposit or senior debt obligations of an
19 insured depository institution, as defined in Section 3 of the
20 Federal Deposit Insurance Act, 12 U.S.C., Section 1813, as amended,
21 or an insured credit union, as defined under the Federal Credit
22 Union Act, 12 U.S.C., Section 1752, as amended;

23 3. An obligation of the United States or a commission, agency,
24 or instrumentality thereof; an obligation that is guaranteed fully

1 as to principal and interest by the United States; or an obligation
2 of a state or a governmental subdivision, agency, or instrumentality
3 thereof;

4 4. The full drawable amount of an irrevocable standby letter of
5 credit for which the stated beneficiary is the Commissioner and that
6 stipulates that the beneficiary need only draw a sight draft under
7 the letter of credit and present it to obtain funds up to the letter
8 of credit amount within seven (7) days of presentation of the items
9 required by subparagraph c of this paragraph.

10 a. The letter of credit shall:

11 (1) be issued by a federally insured depository
12 financial institution, a foreign bank that is
13 authorized under federal law to maintain a
14 federal agency or federal branch office in a
15 state or states, or a foreign bank that is
16 authorized under state law to maintain a branch
17 in a state and the issuer:

18 (a) bears an eligible rating or whose parent
19 corporation bears an eligible rating, and

20 (b) is regulated, supervised, and examined by
21 federal or state authorities having
22 regulatory authority over banks, credit
23 unions, and trust companies,
24

(2) be irrevocable, unconditional, and indicate that it is not subject to any condition or qualifications outside of the letter of credit, (3) not contain reference to any other agreements, documents, or entities, or otherwise provide for any security interest in the licensee, and (4) contain an issue date and expiration date, and expressly provide for automatic extension, without a written amendment, for an additional period of one (1) year from the present or each future expiration date, unless the issuer of the letter of credit notifies the Commissioner in writing by certified or registered mail or courier mail, or other receipted means, at least sixty (60) days prior to any expiration date that the irrevocable letter of credit will not be extended.

b. In the event of any notice of expiration or non-extension of a letter of credit issued under division (4) of subparagraph a of this paragraph, the licensee shall be required to demonstrate to the satisfaction of the Commissioner fifteen (15) days prior to expiration that the licensee maintains and will maintain permissible investments in accordance with

1 this subsection upon the expiration of the letter of
2 credit. If the licensee is not able to do so, the
3 Commissioner may draw on the letter of credit in an
4 amount up to the amount necessary to meet the
5 licensee's requirements to maintain permissible
6 investments in accordance with subsection A of Section
7 35 of this act. Any such draw shall be offset against
8 the licensee's outstanding money transmission
9 obligations. The drawn funds shall be held in trust
10 by the Commissioner or the Commissioner's designated
11 agent, to the extent authorized by law, for the
12 benefit of the purchasers and holders of the
13 licensee's outstanding money transmission obligations.

14 c. The letter of credit shall provide that the issuer of
15 the letter of credit will honor, at sight, a
16 presentation made by the beneficiary to the issuer of
17 the following documents on or prior to the expiration
18 date of the letter of credit:

19 (1) the original letter of credit including any
20 amendments, and

21 (2) a written statement from the beneficiary stating
22 that any of the following events have occurred:

23 (a) the filing of a petition by or against the
24 licensee under the United States Bankruptcy

1 Code, 11 U.S.C., Section 101 et seq., as
2 amended, for bankruptcy or reorganization,
3 (b) the filing of a petition by or against the
4 licensee for receivership, or the
5 commencement of any other judicial or
6 administrative proceeding for its
7 dissolution or reorganization,

8 (c) the seizure of assets of a licensee by the
9 Commissioner pursuant to an emergency order
10 issued in accordance with applicable law, on
11 the basis of an action, violation, or
12 condition that has caused or is likely to
13 cause the insolvency of the licensee, or

14 (d) the beneficiary has received notice of
15 expiration or nonextension of a letter of
16 credit and the licensee has failed to
17 demonstrate to the satisfaction of the
18 beneficiary that the licensee will maintain
19 permissible investments in accordance with
20 subsection A of Section 35 of this act upon
21 the expiration or nonextension of the letter
22 of credit.

23 d. The Commissioner may designate an agent to serve on
24 the Commissioner's behalf as beneficiary to a letter

1 of credit so long as the agent and letter of credit
2 meet requirements established by the Commissioner.
3 The Commissioner's agent may serve as agent for
4 multiple licensing authorities for a single
5 irrevocable letter of credit if the proceeds of the
6 drawable amount for the purposes of this paragraph are
7 assigned to the Commissioner.

8 e. The Commissioner shall be authorized and encouraged to
9 participate in multistate processes designed to
10 facilitate the issuance and administration of letters
11 of credit, including, but not limited to, services
12 provided by the NMLS and State Regulatory Registry,
13 LLC;

14 5. One hundred percent (100%) of the surety bond or deposit
15 provided for under Section 34 of this act that exceeds the average
16 daily money transmission liability in this state; and

17 6. Stablecoin, to the extent the outstanding transmission
18 obligations received by the licensee are in the same kind of
19 stablecoin. For purposes of this subsection, stablecoin shall be
20 required to be held, stored, or kept in custody of the licensee
21 directly or by a third-party custodian that meets the qualifications
22 prescribed by the Commissioner.

23 B. Unless permitted by the Commissioner by rule, policy, or
24 order to exceed the limit as set forth herein, the following

1 investments shall be permissible under Section 35 of this act to the
2 extent specified:

3 1. Receivables that are payable to a licensee from its
4 authorized delegates in the ordinary course of business that are
5 less than seven (7) days old and up to fifty percent (50%) of the
6 aggregate value of the licensee's total permissible investments;

7 2. Of the receivables permissible under paragraph 1 of
8 subsection B of this section, receivables that are payable to a
9 licensee from a single authorized delegate in the ordinary course of
10 business may not exceed ten percent (10%) of the aggregate value of
11 the licensee's total permissible investments;

12 3. The following investments shall be permissible up to twenty
13 percent (20%) per category and combined up to fifty percent (50%) of
14 the aggregate value of the licensee's total permissible investments:

- 15 a. a short-term investment, up to six (6) months, bearing
16 an eligible rating,
- 17 b. commercial paper bearing an eligible rating,
- 18 c. a bill, note, bond, or debenture bearing an eligible
19 rating,
- 20 d. United States tri-party repurchase agreements
21 collateralized at one hundred percent (100%) or more
22 with United States government or agency securities,
23 municipal bonds, or other securities bearing an
24 eligible rating,

- 1 e. money market mutual funds rated less than AAA but
2 equal to or higher than A- by S&P Global Ratings, or
3 the equivalent from any other eligible rating service,
4 and
5 f. a mutual fund or other investment fund composed solely
6 and exclusively of one or more permissible investments
7 listed in paragraphs 1 through 3 of subsection A of
8 this section; and

9 4. Cash, including demand deposits, savings deposits, and funds
10 in such accounts held for the benefit of the licensee's customers,
11 at foreign depository institutions are permissible up to ten percent
12 (10%) of the aggregate value of the licensee's total permissible
13 investments if the licensee has received a satisfactory rating in
14 its most recent examination and the foreign depository institution:

- 15 a. has an eligible rating,
16 b. is registered under the Foreign Account Tax Compliance
17 Act,
18 c. is not located in any country subject to sanctions
19 from the Office of Foreign Assets Control, and
20 d. is not located in a high-risk or noncooperative
21 jurisdiction as designated by the Financial Action
22 Task Force.

1 SECTION 37. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1587 of Title 6, unless there is
3 created a duplication in numbering, reads as follows:

4 A. The Commissioner may suspend or revoke a license or order a
5 licensee to revoke the designation of an authorized delegate if:

6 1. The licensee violates this act or a rule adopted or an order
7 issued under this act;

8 2. The licensee does not cooperate with an examination or
9 investigation by the Commissioner;

10 3. The licensee engages in fraud, intentional
11 misrepresentation, or gross negligence;

12 4. An authorized delegate is convicted of a violation of a
13 state or federal anti-money-laundering statute or violates a rule
14 adopted or an order issued under this act if the violation was a
15 result of the licensee's willful misconduct or willful blindness;

16 5. The competence, experience, character, or general fitness of
17 the licensee, authorized delegate, person in control of a licensee,
18 key individual, or responsible person of the authorized delegate
19 indicates that it is not in the public's best interest to permit the
20 licensee or authorized delegate to provide money transmissions;

21 6. The licensee engages in an unsafe or unsound practice;

22 7. The licensee is insolvent, suspends payment of its
23 obligations, or makes a general assignment for the benefit of its
24 creditors;

1 8. The licensee does not remove an authorized delegate after
2 the Commissioner issues and serves upon the licensee a final order,
3 including a finding that the authorized delegate has violated this
4 act; or

5 9. The licensee's license has been suspended or revoked in
6 another state.

7 B. In determining whether a licensee is engaging in an unsafe
8 or unsound practice, the Commissioner may consider the size and
9 condition of the licensee's money transmission obligations, the
10 magnitude of the loss, the gravity of the violation of this act, and
11 the previous conduct of the person involved.

12 SECTION 38. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 1588 of Title 6, unless there is
14 created a duplication in numbering, reads as follows:

15 A. The Commissioner may issue an order suspending or revoking
16 the designation of an authorized delegate if the Commissioner finds
17 that:

18 1. The authorized delegate violated this act or a rule adopted
19 or an order issued under this act;

20 2. The authorized delegate did not cooperate with an
21 examination or investigation by the Commissioner;

22 3. The authorized delegate engaged in fraud, intentional
23 misrepresentation, or gross negligence;

1 4. The authorized delegate is convicted of a violation of a
2 state or federal anti-money-laundering statute;

3 5. The competence, experience, character, or general fitness of
4 the authorized delegate or a person in control of the authorized
5 delegate indicates that it is not in the public's best interest to
6 permit the authorized delegate to provide money transmissions; or

7 6. The authorized delegate is engaging in an unsafe or unsound
8 practice.

9 B. In determining whether an authorized delegate is engaging in
10 an unsafe or unsound practice, the Commissioner may consider the
11 size and condition of the authorized delegate's provision of money
12 transmission obligations, the magnitude of the loss, the gravity of
13 the violation of this act or a rule adopted or order issued under
14 this act, and the previous conduct of the authorized delegate.

15 C. An authorized delegate may apply for relief from a
16 suspension or revocation of designation as an authorized delegate
17 according to procedures prescribed by the Commissioner.

18 SECTION 39. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 1589 of Title 6, unless there is
20 created a duplication in numbering, reads as follows:

21 A. If the Commissioner determines that any conduct is likely a
22 violation of this act or of a rule adopted or an order issued under
23 this act by a licensee or authorized delegate and is likely to cause
24 immediate and irreparable harm to the licensee, its customers, or

1 the public or cause insolvency or significant dissipation of assets
2 of the licensee, the Commissioner may issue an order requiring the
3 licensee or authorized delegate to cease and desist the conduct.
4 The order shall become effective upon service of the order on the
5 licensee or authorized delegate.

6 B. The Commissioner may issue an order against a licensee to
7 cease and desist from providing money transmission through an
8 authorized delegate that is the subject of a separate order by the
9 Commissioner.

10 C. An order to cease and desist remains effective and
11 enforceable pending the completion of an administrative proceeding.
12 An order to cease and desist shall become permanent unless the
13 licensee or authorized delegate files an appeal with the Oklahoma
14 State Banking Board within fifteen (15) calendar days of the date of
15 the order.

16 SECTION 40. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 1590 of Title 6, unless there is
18 created a duplication in numbering, reads as follows:

19 The Commissioner may enter into a consent order at any time with
20 a person to resolve a matter arising under this act or a rule
21 adopted or order issued under this act. A consent order shall be
22 signed by the person to whom it is issued or by the person's
23 authorized representative and shall indicate agreement with the
24 terms contained in the order. A consent order may provide that the

1 consent order does not constitute an admission by the person that he
2 or she has violated this act or a rule adopted or an order issued
3 under this act. A consent order shall be a final order and may not
4 be appealed.

5 SECTION 41. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 1591 of Title 6, unless there is
7 created a duplication in numbering, reads as follows:

8 A. A person who intentionally makes a false statement,
9 misrepresentation, or false certification in a record filed or
10 required to be maintained under this act or that intentionally makes
11 a false entry or omits a material entry in such a record shall, upon
12 conviction, be guilty of a Class D1 felony offense punishable by
13 imprisonment as provided for in subsections B through F of Section
14 20N of Title 21 of the Oklahoma Statutes, or by a fine of Ten
15 Thousand Dollars (\$10,000.00), or by both such fine and
16 imprisonment.

17 B. A person who knowingly engages in an activity for which a
18 license is required under this act without being licensed under this
19 act shall, upon conviction, be guilty of a Class D1 felony offense
20 punishable by imprisonment as provided for in subsections B through
21 F of Section 20N of Title 21 of the Oklahoma Statutes, or by a fine
22 of Ten Thousand Dollars (\$10,000.00), or by both such fine and
23 imprisonment.

1 SECTION 42. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1592 of Title 6, unless there is
3 created a duplication in numbering, reads as follows:

4 The Commissioner may assess a fine against a person who violates
5 this act or a rule adopted or an order issued under this act in an
6 amount not to exceed Five Thousand Dollars (\$5,000.00) per violation
7 for each day a violation is outstanding, plus any costs or expenses
8 for the investigation and prosecution of the matter, including
9 reasonable attorney fees.

10 SECTION 43. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 1593 of Title 6, unless there is
12 created a duplication in numbering, reads as follows:

13 A. If the Commissioner has reason to believe that a person has
14 violated or is violating Section 12 of this act, the Commissioner
15 may issue an order requiring that the person cease and desist from
16 the violation of Section 12 of this act.

17 B. In an emergency, the Commissioner may petition the District
18 Court of Oklahoma County for the issuance of an ex parte temporary
19 restraining order pursuant to the rules of civil procedure.

20 C. An order to cease and desist shall:

21 1. Become effective upon service of it upon the person;

22 2. Remain effective and enforceable pending the completion of
23 an administrative proceeding; and
24

1 3. Become permanent unless the person files an appeal with the
2 Oklahoma State Banking Board within fifteen (15) calendar days of
3 the date of the order.

4 SECTION 44. AMENDATORY Section 2, Chapter 363, O.S.L.
5 2025 (6 O.S. Supp. 2025, Section 1520.1), is amended to read as
6 follows:

7 Section 1520.1. A. A digital asset kiosk operator shall not
8 engage in digital asset kiosk transactions or hold itself out as
9 being able to engage in digital asset kiosk transactions with or on
10 behalf of another person unless the digital asset kiosk operator is
11 licensed in this state as a money transmitter pursuant to the
12 ~~Oklahoma Financial Transaction Reporting Act~~ Oklahoma Money
13 Transmission Modernization Act.

14 1. Any digital asset kiosk operator acting in violation of this
15 subsection shall, upon conviction, be guilty of a misdemeanor,
16 punishable by a fine not less than Six Hundred Dollars (\$600.00) nor
17 more than Two Thousand Dollars (\$2,000.00) per violation, or by
18 imprisonment in the county jail for not less than thirty (30) days
19 nor more than one (1) year, or by both such fine and imprisonment.

20 2. Any digital asset kiosk which is ~~used~~ operated by a digital
21 asset kiosk operator in violation of this subsection may be seized
22 at the direction of the Attorney General by any commissioned peace
23 officer in this state. The procedures set forth in Section 1738 of
24

1 Title 21 of the Oklahoma Statutes shall apply to any digital asset
2 kiosk seized under this subsection.

3 3. The Attorney General is authorized to promulgate rules to
4 effectuate the provisions of this subsection.

5 4. Any customer who has been fraudulently induced to engage in
6 digital asset transactions using a digital asset kiosk operated in
7 violation of this subsection may file a civil suit against the
8 digital asset kiosk operator for the amount of any losses sustained
9 by the customer related to such digital asset transactions.

10 B. A digital asset kiosk operator shall not locate or relocate,
11 or allow a third party to locate or relocate, a digital asset kiosk
12 in this state unless the digital asset kiosk operator has provided
13 notice of intent to locate or relocate a digital asset kiosk to the
14 Oklahoma State Banking Department no less than ten (10) days prior
15 to its activation. The notice to the Banking Department shall
16 contain the same information for the digital asset kiosk to be
17 located or relocated as is required in the quarterly location report
18 pursuant to subsection C of this section.

19 C. Each digital asset kiosk operator shall submit a quarterly
20 report of the location of each digital asset kiosk located within
21 this state within forty-five (45) days of the end of the calendar
22 quarter. The location report shall include:

- 23 1. The company's legal name;
- 24 2. Any fictitious or trade name;

1 3. The physical address;

2 4. The start date of operation of the digital asset kiosk at
3 each location; and

4 5. The end date of operation of the digital asset kiosk at each
5 location, if applicable.

6 D. A digital asset kiosk operator shall disclose in a clear,
7 conspicuous, and easily readable manner in the chosen language of
8 the customer all relevant terms and conditions generally associated
9 with the products, services, and activities of the digital asset
10 kiosk operator and digital assets.

11 1. The digital asset kiosk operator shall receive
12 acknowledgement of receipt of all disclosures required under this
13 ~~act~~ section through confirmation of consent.

14 2. The disclosures under this act shall include:

15 a. a warning, written prominently and in bold type, and
16 provided separately from the other required
17 disclosures ~~below~~, stating: "WARNING: LOSSES DUE TO
18 FRAUDULENT OR ACCIDENTAL TRANSACTIONS ARE NOT
19 RECOVERABLE AND TRANSACTIONS IN DIGITAL ASSETS ARE
20 IRREVERSIBLE. DIGITAL ASSET TRANSACTIONS MAY BE USED
21 TO STEAL YOUR MONEY BY CRIMINALS IMPERSONATING THE
22 GOVERNMENT, ORGANIZATIONS, OR YOUR LOVED ONES. THEY
23 CAN THREATEN JAIL TIME, SAY YOUR IDENTITY HAS BEEN
24 STOLEN, ALLEGE YOUR COMPUTER HAS BEEN HACKED, INSIST

1 YOU WITHDRAW MONEY FROM YOUR BANK ACCOUNT TO PURCHASE
2 DIGITAL ASSETS, OR A NUMBER OF OTHER SCAMS. IF YOU
3 BELIEVE YOU ARE BEING SCAMMED, CALL YOUR LOCAL LAW
4 ENFORCEMENT AGENCY."

5 b. the material risks associated with digital assets and
6 digital asset transactions including, but not limited
7 to:

8 (1) a warning that once completed, the transaction
9 may not be reversed,

10 (2) the digital asset kiosk operator's liability for
11 unauthorized digital asset transactions,

12 (3) the digital asset customer's liability for
13 unauthorized currency transactions,

14 (4) that digital assets are not legal tender, backed
15 or insured by the government, and accounts and
16 value balances are not subject to Federal Deposit
17 Insurance Corporation, National Credit Union
18 Administration, or Securities Investor Protection
19 Corporation protections,

20 (5) that some digital asset transactions are deemed
21 to be made when recorded on a public ledger,
22 which may not be the date or time when the person
23 initiates the transaction,

1 (6) that a digital asset's value may be derived from
2 market participants' continued willingness to
3 exchange currency for digital assets, which may
4 result in the permanent and total loss of a
5 particular digital asset's value if the market
6 for digital assets disappears,

7 (7) that a person who accepts a digital asset as
8 payment today is not required to accept and might
9 not accept a digital asset in the future,

10 (8) that the volatility and unpredictability of the
11 price of digital assets relative to currency may
12 result in a significant loss over a short period
13 of time,

14 (9) that the nature of digital assets means that any
15 technological difficulties experienced by digital
16 asset kiosk operators may prevent access to or
17 use of a person's digital assets, and

18 (10) that any bond maintained by the digital asset
19 kiosk operator for the benefit of a person may
20 not cover all losses a person incurs,

21 c. the amount of the transaction denominated in United
22 States dollars as well as the applicable digital
23 assets,
24

- d. any fees or expenses charged by the digital asset kiosk operator,
- e. any applicable exchange rates,
- f. a daily digital asset transaction limit of no more than Two Thousand Dollars (\$2,000.00) for new customers,
- g. notice of a change in the digital asset kiosk operator's rules or policies,
- h. the name, address, and telephone number of the owner of the digital asset kiosk and the days, times, and means by which a customer can contact the owner for customer assistance, displayed on or at the location of the digital asset kiosk, or on the first screen of the digital asset kiosk,
- i. under what circumstances the digital asset kiosk operator, without a court or government order, discloses a person's account information to third parties, and
- j. other disclosures that are customarily given in connection with a digital asset transaction.

E. Upon each transaction's completion, the digital asset kiosk operator shall provide the customer with a receipt, in paper where possible, in the language chosen by the customer, containing the following information:

1 1. The digital asset kiosk operator's name and contact
2 information, including a telephone number to answer questions and
3 register complaints;

4 2. The type, value, date, and precise time of the transaction,
5 transaction hash, and each applicable digital asset address;

6 3. All fees charged;

7 4. The exchange rate of the digital asset to United States
8 dollars;

9 5. A statement of the digital asset kiosk operator's liability
10 for nondelivery or delayed delivery; and

11 6. A statement of the digital asset kiosk operator's refund
12 policy.

13 F. In the event that a paper receipt is not possible, the
14 digital asset kiosk operator shall post in a conspicuous manner
15 information by which a customer who has engaged in a digital asset
16 kiosk transaction can contact the digital asset kiosk operator to
17 obtain a copy of the receipt.

18 G. All digital asset kiosk operators shall use blockchain
19 technology to assist in the prevention of sending purchased digital
20 assets from a digital asset kiosk operator to a digital asset wallet
21 known to be affiliated with fraudulent activity at the time of a
22 transaction. The Banking Department may request evidence from any
23 digital asset kiosk operator of the current use of blockchain
24 analytics.

1 1. All digital asset kiosk operators shall take reasonable
2 steps to detect and prevent fraud, including establishing and
3 maintaining a written anti-fraud policy including, but not limited
4 to:

- 5 a. the identification and assessment of fraud-related
- 6 risk areas,
- 7 b. procedures and controls to protect against identified
- 8 risks,
- 9 c. allocation of responsibility for monitoring risks, and
- 10 d. procedures for the periodic evaluation and revision of
- 11 the anti-fraud procedures, controls, and monitoring
- 12 mechanisms.

13 2. Each digital asset kiosk operator shall designate and employ
14 a compliance officer with the following requirements:

- 15 a. the individual shall be qualified to coordinate and
- 16 monitor compliance with this ~~act~~ section and all other
- 17 applicable federal and state laws, rules, and
- 18 regulations,
- 19 b. the individual shall be employed full-time by the
- 20 digital asset kiosk operator,
- 21 c. the designated compliance officer ~~cannot~~ shall not be
- 22 an individual who owns more than twenty percent (20%)
- 23 of the digital asset kiosk by whom the individual is
- 24 employed, and

1 d. the individual shall be responsible for all compliance
2 responsibilities required under federal and state
3 laws, rules, and regulations ~~shall be~~ and ensure such
4 responsibilities are completed by full-time employees
5 of the digital asset kiosk operator.

6 3. A digital asset kiosk operator shall issue a refund to a new
7 customer for the full amount of all fraudulent transactions,
8 including all transaction fees and charges that were charged to the
9 customer pursuant to subsection I of this section, made while a new
10 customer. To receive a refund under this section, a new customer
11 shall have been fraudulently induced to engage in the digital asset
12 transactions and shall contact the digital asset kiosk operator and
13 the Office of the Attorney General to report the fraudulent nature
14 of the transactions within fourteen (14) days of the last fraudulent
15 transaction to occur while the customer was a new customer.

16 4. A digital asset kiosk operator shall issue a refund to an
17 existing customer who qualifies under this paragraph for the full
18 amount of all transaction fees and charges that were charged to the
19 customer pursuant to subsection I of this section upon the request
20 of the customer. To receive a refund under this paragraph, a
21 customer shall have been fraudulently induced to engage in a digital
22 asset ~~transactions~~ transaction and shall contact the digital asset
23 kiosk operator and the Office of the Attorney General to report the
24

1 fraudulent nature of the transaction within fourteen (14) days of
2 the transaction.

3 H. A digital asset kiosk operator shall not accept transactions
4 of more than Two Thousand Dollars (\$2,000.00), or the equivalent in
5 digital assets, in a single day in connection with digital asset
6 kiosk transactions with a new customer in this state by one or more
7 digital asset kiosks.

8 I. The aggregate fees and charges directly or indirectly
9 charged to a customer related to a single transaction or series of
10 related transactions involving digital assets effected through a
11 digital asset kiosk in this state, including any difference between
12 the price charged to a customer to buy, sell, exchange, swap, or
13 convert digital assets and the prevailing market value of such
14 digital assets at the time of such transaction or transactions,
15 shall not exceed fifteen percent (15%) of the United States dollar
16 equivalent of the digital assets involved in the transaction or
17 transactions.

18 J. All digital asset kiosk operators performing business in
19 this state shall provide live customer service at a minimum Monday
20 through Friday from 8:00 a.m. CST to 10:00 p.m. CST. The customer
21 service toll-free number shall be displayed on the digital asset
22 kiosk or the digital asset kiosk screens.

23 K. The Banking Department is authorized to promulgate rules
24 necessary to implement the provisions of this ~~act~~ section.

SECTION 45. AMENDATORY Section 14, Chapter 366, O.S.L.

2024 (21 O.S. Supp. 2025, Section 20N), is amended to read as follows:

Section 20N. A. ~~Upon the effective date of this act~~ Beginning July 1, 2026, Class D1 shall include the following criminal offenses:

1. Public warehouse and/or commodity stock fraud, as provided for in Section 9-34 of Title 2 of the Oklahoma Statutes;

2. False issuance of warehouse receipt, as provided for in Section 9-35 of Title 2 of the Oklahoma Statutes;

3. Misrepresentation of charter, as provided for in Section 9-36 of Title 2 of the Oklahoma Statutes;

4. Tampering with anhydrous equipment, as provided for in subsection A of Section 11-10 of Title 2 of the Oklahoma Statutes;

5. Willfully burn forest, grass, crops, or woodlands, as provided for in Section 16-25 of Title 2 of the Oklahoma Statutes;

6. Willful and unlawful burning of forest, grass, croplands, rangeland, or other wild lands by owner, as provided for in Section 16-28.1 of Title 2 of the Oklahoma Statutes;

7. Possession of incendiary device with the intent to burn, as provided for in Section 16-34 of Title 2 of the Oklahoma Statutes;

8. Operate aircraft not registered with the Federal Aviation Administration Office of Aircraft Registry or foreign country, as

1 provided for in subsection A of Section 258 of Title 3 of the
2 Oklahoma Statutes;

3 9. Supply false information in regard to aircraft ownership, as
4 provided for in subsection B of Section 258 of Title 3 of the
5 Oklahoma Statutes;

6 10. Concealing identity of aircraft, as provided for in
7 subsection C of Section 258 of Title 3 of the Oklahoma Statutes;

8 11. Destruction of registration or serial number on aircraft,
9 as provided for in subsection A of Section 259 of Title 3 of the
10 Oklahoma Statutes;

11 12. Destruction of registration or serial number on aircraft
12 with intent to conceal, as provided for in subsection B of Section
13 259 of Title 3 of the Oklahoma Statutes;

14 13. Sell, purchase, or possess aircraft with removed or
15 falsified identification number with intent to misrepresent the
16 identity of aircraft, as provided for in subsection D of Section 259
17 of Title 3 of the Oklahoma Statutes;

18 14. Operating aircraft under the influence of alcohol, second
19 or subsequent offense within ten (10) years, as provided for in
20 subsection A of Section 301 of Title 3 of the Oklahoma Statutes;

21 15. Operating aircraft under the influence of intoxicant,
22 second or subsequent offense ~~with~~ within ten (10) years, as provided
23 for in subsection A of Section 301 of Title 3 of the Oklahoma
24 Statutes;

1 16. Unauthorized use of aircraft, as provided for in subsection
2 A of Section 321 of Title 3 of the Oklahoma Statutes;

3 17. Charge fee for horse race without a license, as provided
4 for in Section 205 of Title 3A of the Oklahoma Statutes;

5 18. Pari-mutuel wagering without a license, as provided for in
6 subsection A of Section 208.4 of Title 3A of the Oklahoma Statutes;

7 19. Entering racehorse under false name, as provided for in
8 subsection A of Section 208.6 of Title 3A of the Oklahoma Statutes;

9 20. Entering racehorse without name being registered, as
10 provided for in subsection B of Section 208.6 of Title 3A of the
11 Oklahoma Statutes;

12 21. Using racing stimulating devices, as provided for in
13 Section 208.7 of Title 3A of the Oklahoma Statutes;

14 22. Racetrack bribery or ticket falsification, as provided for
15 in Section 208.8 of Title 3A of the Oklahoma Statutes;

16 23. Unauthorized wagering on horse racing, as provided for in
17 Section 208.9 of Title 3A of the Oklahoma Statutes;

18 24. Falsification of information on racehorse, as provided for
19 in Section 208.10 of Title 3A of the Oklahoma Statutes;

20 25. Administer a drug or medication without authorization to
21 horse prior to racing, as provided for in subsection C of Section
22 208.11 of Title 3A of the Oklahoma Statutes;

1 26. Violation of horse racing drug provisions, as provided for
2 in subsection D of Section 208.11 of Title 3A of the Oklahoma
3 Statutes;

4 27. Forging and/or counterfeiting state lottery ticket, as
5 provided for in subsection A of Section 727 of Title 3A of the
6 Oklahoma Statutes;

7 28. Influence lottery win by fraud, as provided for in
8 subsection B of Section 727 of Title 3A of the Oklahoma Statutes;

9 29. Own dog that attacks and kills a person, as provided for in
10 subsection B of Section 42.4 of Title 4 of the Oklahoma Statutes;

11 30. Release dog on law enforcement officer, as provided for in
12 subsection C of Section 42.4 of Title 4 of the Oklahoma Statutes;

13 31. Pledging assets of bank as collateral, as provided in
14 Section 809 of Title 6 of the Oklahoma Statutes;

15 32. Unlawful compensation of bank officer, as provided for in
16 Section 1405 of Title 6 of the Oklahoma Statutes;

17 33. Receipt of deposits while insolvent, as provided for in
18 Section 1406 of Title 6 of the Oklahoma Statutes;

19 34. Unlawful service as bank officer or director, as provided
20 for in Section 1407 of Title 6 of the Oklahoma Statutes;

21 35. Serving as bank commissioner, administrative assistant, or
22 assistant banking commissioner with a felony conviction, as provided
23 for in Section 1408 of Title 6 of the Oklahoma Statutes;

24

1 36. Concealing bank transaction, as provided for in Section
2 1409 of Title 6 of the Oklahoma Statutes;

3 37. Improper maintenance of accounts or false or deceptive
4 entries and statements, as provided for in Section 1410 of Title 6
5 of the Oklahoma Statutes;

6 38. Payment of penalties and judgments against others, as
7 provided for in Section 1411 of Title 6 of the Oklahoma Statutes;

8 39. Embezzlement of bank funds, as provided for in Section 1412
9 of Title 6 of the Oklahoma Statutes;

10 40. Circulation of statement or representation for the purpose
11 of injuring any bank institution, as provided for in Section 1413 of
12 Title 6 of the Oklahoma Statutes;

13 41. Authorizing, executing, or ratifying a criminal offense, as
14 provided for in subsection A of Section 1414 of Title 6 of the
15 Oklahoma Statutes;

16 42. Violation of any lawful order of the Board or Commissioner,
17 as provided for in subsection C of Section 1414 of Title 6 of the
18 Oklahoma Statutes;

19 43. Bank advertising with confusingly similar name, as provided
20 for in subsection A of Section 1417 of Title 6 of the Oklahoma
21 Statutes;

22 44. Using shortened confusingly similar name for advertising,
23 as provided for in subsection B of Section 1417 of Title 6 of the
24 Oklahoma Statutes;

1 45. Acquiring another bank but using former name, as provided
2 for in subsection C of Section 1417 of Title 6 of the Oklahoma
3 Statutes;

4 46. Non-banking business using confusingly similar name, as
5 provided for in subsection D of Section 1417 of Title 6 of the
6 Oklahoma Statutes;

7 47. Intentionally making a false statement, misrepresentation,
8 or false certification in a record filed or required to be
9 maintained under the Oklahoma Money Transmission Modernization Act
10 or intentionally making a false entry or omitting a material entry
11 in such a record, as provided for in subsection A of Section 41 of
12 this act;

13 48. Knowingly engaging in an activity for which a license is
14 required under the Oklahoma Money Transmission Modernization Act
15 without being licensed, as provided for in subsection B of Section
16 41 of this act;

17 49. Registered sex offender providing services in a child care
18 facility, as provided for in subsection F of Section 404.1 of Title
19 10 of the Oklahoma Statutes;

20 ~~48.~~ 50. Failure to report child abuse, as provided for in
21 subsection C of Section 1-2-101 of Title 10A of the Oklahoma
22 Statutes;

1 ~~49.~~ 51. Interception of wire, oral, or electronic
2 communication, as provided for in paragraph 1 of Section 176.3 of
3 Title 13 of the Oklahoma Statutes;

4 ~~50.~~ 52. Using devices to intercept oral communication, as
5 provided for in paragraph 2 of Section 176.3 of Title 13 of the
6 Oklahoma Statutes;

7 ~~51.~~ 53. Disclosing contents of wire, oral, or electronic
8 communication, as provided for in paragraph 3 of Section 176.3 of
9 Title 13 of the Oklahoma Statutes;

10 ~~52.~~ 54. Using contents of wire, oral, or electronic
11 communication, as provided for in paragraph 4 of Section 176.3 of
12 Title 13 of the Oklahoma Statutes;

13 ~~53.~~ 55. Removing, injuring, or obstructing telephone line, as
14 provided for in paragraph 5 of Section 176.3 of Title 13 of the
15 Oklahoma Statutes;

16 ~~54.~~ 56. Carrying devices for interception of wire, oral, or
17 electronic communication, as provided for in paragraph 6 of Section
18 176.3 of Title 13 of the Oklahoma Statutes;

19 ~~55.~~ 57. Making devices for interception of wire, oral, or
20 electronic communication, as provided for in paragraph 7 of Section
21 176.3 of Title 13 of the Oklahoma Statutes;

22 ~~56.~~ 58. Using communication facility in committing felonies, as
23 provided for in paragraph 8 of Section 176.3 of Title 13 of the
24 Oklahoma Statutes;

1 ~~57.~~ 59. Violation of the Oklahoma Consumer Protection Act, as
2 provided for in Section 753 of Title 15 of the Oklahoma Statutes;

3 ~~58.~~ 60. Violation of the Home Repair Fraud Act, as provided for
4 in Section 765.3 of Title 15 of the Oklahoma Statutes;

5 ~~59.~~ 61. Conduct closing-out sale without license, as provided
6 for in Section 767 of Title 15 of the Oklahoma Statutes;

7 ~~60.~~ 62. Violation of the Unlawful Electronic Mail Act, as
8 provided for in Section 776.1 of Title 15 of the Oklahoma Statutes;

9 ~~61.~~ 63. Violation of the Unlawful Electronic Mail Act for
10 commercial electronic mail, as provided for in Section 776.6 of
11 Title 15 of the Oklahoma Statutes;

12 ~~62.~~ 64. Conceal or destroy corporation records, as provided for
13 in Section 16 of Title 17 of the Oklahoma Statutes;

14 ~~63.~~ 65. Misapplication of funds, as provided for in Section 411
15 of Title 18 of the Oklahoma Statutes;

16 ~~64.~~ 66. Solicit funds to secure old age assistance by deception
17 or fraud, as provided for in Section 553.1 of Title 18 of the
18 Oklahoma Statutes;

19 ~~65.~~ 67. Inspector, judge, or clerk refusing to extend or
20 enforce the right to sign and deliver the certificate of election
21 votes, as provided for in Section 90 of Title 19 of the Oklahoma
22 Statutes;

1 ~~66.~~ 68. Knowing and willful failure or refusal to perform
2 duties, as provided for in Section 91 of Title 19 of the Oklahoma
3 Statutes;

4 ~~67.~~ 69. County officer failing to make daily deposit, as
5 provided for in Section 682 of Title 19 of the Oklahoma Statutes;

6 ~~68.~~ 70. Use of false or illegal voucher by county official, as
7 provided for in Section 686 of Title 19 of the Oklahoma Statutes;

8 ~~69.~~ 71. Gift to influence legislator, as provided for in
9 Section 318 of ~~Title 21 of the Oklahoma Statutes~~ this title;

10 ~~70.~~ 72. Legislator receiving payoff for employment of other, as
11 provided for in Section 321 of ~~Title 21 of the Oklahoma Statutes~~
12 this title;

13 ~~71.~~ 73. Lobbying legislature on contingency fee basis, as
14 provided for in Section 334 of ~~Title 21 of the Oklahoma Statutes~~
15 this title;

16 ~~72.~~ 74. Furnishing public supplies for profit, as provided for
17 in subsection A of Section 355 of ~~Title 21 of the Oklahoma Statutes~~
18 this title;

19 ~~73.~~ 75. Purchase public supplies from business that employs
20 family member or spouse with more than five percent (5%) interest,
21 as provided for in subsection C of Section 355 of ~~Title 21 of the~~
22 ~~Oklahoma Statutes~~ this title;

1 ~~74.~~ 76. Make false claim against the state, as provided for in
2 subsection A of Section 358 of ~~Title 21 of the Oklahoma Statutes~~
3 this title;

4 ~~75.~~ 77. Bribing an officer, as provided for in Section 381 of
5 ~~Title 21 of the Oklahoma Statutes~~ this title;

6 ~~76.~~ 78. Bribing participant or official in athletic contest, as
7 provided for in Section 399 of ~~Title 21 of the Oklahoma Statutes~~
8 this title;

9 ~~77.~~ 79. Engaging in pattern of criminal offenses, as provided
10 for in Section 425 of ~~Title 21 of the Oklahoma Statutes~~ this title;

11 ~~78.~~ 80. Escape from county or city jail, as provided for in
12 subsection A of Section 443 of ~~Title 21 of the Oklahoma Statutes~~
13 this title;

14 ~~79.~~ 81. Escape from the Department of Corrections or
15 alternative incarceration, as provided for in subsection B of
16 Section 443 of ~~Title 21 of the Oklahoma Statutes~~ this title;

17 ~~80.~~ 82. Escape from juvenile detention facility, as provided
18 for in subsection E of Section 443 of ~~Title 21 of the Oklahoma~~
19 ~~Statutes~~ this title;

20 ~~81.~~ 83. Unauthorized entry into penal institution or jail, as
21 provided for in Section 445 of ~~Title 21 of the Oklahoma Statutes~~
22 this title;

23 ~~82.~~ 84. Preparing false evidence, as provided for in Section
24 453 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 ~~83.~~ 85. Bribing witness to falsely testify, as provided for in
2 Section 456 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3 ~~84.~~ 86. Larceny or destruction of records by clerk or officer,
4 as provided for in Section 461 of ~~Title 21 of the Oklahoma Statutes~~
5 this title;

6 ~~85.~~ 87. Larceny or destruction of records by person other than
7 officers, as provided for in Section 462 of ~~Title 21 of the Oklahoma~~
8 ~~Statutes~~ this title;

9 ~~86.~~ 88. Offer forged or false instruments for the record, as
10 provided for in Section 463 of ~~Title 21 of the Oklahoma Statutes~~
11 this title;

12 ~~87.~~ 89. Perjury, as provided for in Section 491 of ~~Title 21 of~~
13 ~~the Oklahoma Statutes~~ this title;

14 ~~88.~~ 90. Contradictory statements as perjury, as provided for in
15 Section 496 of ~~Title 21 of the Oklahoma Statutes~~ this title;

16 ~~89.~~ 91. Perjury by subornation, as provided for in Section 504
17 of ~~Title 21 of the Oklahoma Statutes~~ this title;

18 ~~90.~~ 92. Falsify public record, as provided for in Section 531
19 of ~~Title 21 of the Oklahoma Statutes~~ this title;

20 ~~91.~~ 93. Fortifying access point to place where felony is being
21 committed, as provided for in Section 540C of ~~Title 21 of the~~
22 ~~Oklahoma Statutes~~ this title;

23 ~~92.~~ 94. Compounding a crime, as provided for in Section 543 of
24 ~~Title 21 of the Oklahoma Statutes~~ this title;

1 ~~93.~~ 95. Substitute a child to deceive a parent or guardian, as
2 provided for in Section 579 of ~~Title 21 of the Oklahoma Statutes~~
3 this title;

4 ~~94.~~ 96. Record, listen to, or observe jury proceedings, as
5 provided for in Section 588 of ~~Title 21 of the Oklahoma Statutes~~
6 this title;

7 ~~95.~~ 97. Abuse, sexual abuse, or exploitation of a vulnerable
8 adult, as provided for in subsection A of Section 843.3 of ~~Title 21~~
9 ~~of the Oklahoma Statutes~~ this title;

10 ~~96.~~ 98. Neglect of a vulnerable adult, as provided for in
11 subsection B of Section 843.3 of ~~Title 21 of the Oklahoma Statutes~~
12 this title;

13 ~~97.~~ 99. Procuring an abortion, as provided for in Section 861
14 of ~~Title 21 of the Oklahoma Statutes~~ this title;

15 ~~98.~~ 100. Adultery, as provided for in Section 871 of ~~Title 21~~
16 ~~of the Oklahoma Statutes~~ this title;

17 ~~99.~~ 101. Bigamy, as provided for in Section 881 of ~~Title 21 of~~
18 ~~the Oklahoma Statutes~~ this title;

19 ~~100.~~ 102. Knowingly marrying a bigamist, as provided for in
20 Section 884 of ~~Title 21 of the Oklahoma Statutes~~ this title;

21 ~~101.~~ 103. Confidence game by cards, as provided for in Section
22 954 of ~~Title 21 of the Oklahoma Statutes~~ this title;

23 ~~102.~~ 104. Dealing in gambling devices, as provided for in
24 Section 984 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 ~~103.~~ 105. Install communication of gambling information, as
2 provided for in Section 986 of ~~Title 21 of the Oklahoma Statutes~~
3 this title;

4 ~~104.~~ 106. Dissemination of gambling information, as provided
5 for in Section 987 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6 ~~105.~~ 107. Conspiracy to violate gambling laws, as provided for
7 in Section 988 of ~~Title 21 of the Oklahoma Statutes~~ this title;

8 ~~106.~~ 108. Engaging in prostitution while HIV-infected, as
9 provided for in subsection B of Section 1031 of ~~Title 21 of the~~
10 ~~Oklahoma Statutes~~ this title;

11 ~~107.~~ 109. Engage in or operate prostitution within one thousand
12 (1,000) feet of a school or church, as provided for in subsection D
13 of Section 1031 of ~~Title 21 of the Oklahoma Statutes~~ this title;

14 ~~108.~~ 110. Interactive computer service provider failing to
15 remove child pornography, third or subsequent offense, as provided
16 for in Section 1040.80 of ~~Title 21 of the Oklahoma Statutes~~ this
17 title;

18 ~~109.~~ 111. Gain or attempt to gain value from nonconsensual
19 dissemination of private sexual images, as provided for in
20 subsection G of Section 1040.13b of ~~Title 21 of the Oklahoma~~
21 ~~Statutes~~ this title;

22 ~~110.~~ 112. Sex offender entering safety zone around school, as
23 provided for in Section 1125 of ~~Title 21 of the Oklahoma Statutes~~
24 this title;

1 ~~111.~~ 113. Unlawful removal of dead body, as provided for in
2 Section 1161 of ~~Title 21 of the Oklahoma Statutes~~ this title;
3 ~~112.~~ 114. Purchasing or receiving dead body, as provided for in
4 Section 1162 of ~~Title 21 of the Oklahoma Statutes~~ this title;
5 ~~113.~~ 115. Using photographic, electronic, or video equipment in
6 clandestine manner, as provided for in subsection B of Section 1171
7 of ~~Title 21 of the Oklahoma Statutes~~ this title;
8 ~~114.~~ 116. Obscene, threatening, or harassing phone call, second
9 or subsequent offense, as provided for in Section 1172 of ~~Title 21~~
10 ~~of the Oklahoma Statutes~~ this title;
11 ~~115.~~ 117. Spreading infectious diseases, as provided for in
12 Section 1192 of ~~Title 21 of the Oklahoma Statutes~~ this title;
13 ~~116.~~ 118. Altering livestock appearance for exhibition, second
14 or subsequent offense, as provided for in Section 1229 of ~~Title 21~~
15 ~~of the Oklahoma Statutes~~ this title;
16 ~~117.~~ 119. Unlawfully transport hazardous waste, as provided for
17 in Section 1230.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;
18 ~~118.~~ 120. Unlawful waste management, as provided for in Section
19 1230.4 of ~~Title 21 of the Oklahoma Statutes~~ this title;
20 ~~119.~~ 121. False statements and acts concerning permits and
21 waste, as provided for in Section 1230.5 of ~~Title 21 of the Oklahoma~~
22 ~~Statutes~~ this title;
23 ~~120.~~ 122. Unlawful disposal of hazardous waste, as provided for
24 in Section 1230.6 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 ~~121.~~ 123. Attempts to violate the Sabotage Prevention Act, as
2 provided for in Section 1265.4 of ~~Title 21 of the Oklahoma Statutes~~
3 this title;

4 ~~122.~~ 124. Carry weapon with intent to injure another, as
5 provided for in Section 1278 of ~~Title 21 of the Oklahoma Statutes~~
6 this title;

7 ~~123.~~ 125. Teaching, demonstrating, or training use of firearms
8 in furtherance of riot, as provided for in Section 1320.10 of ~~Title~~
9 ~~21 of the Oklahoma Statutes~~ this title;

10 ~~124.~~ 126. Delivering fraudulent bill of lading, as provided for
11 in Section 1411 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12 ~~125.~~ 127. Maintaining fraudulent warehouse receipts, as
13 provided for in Section 1412 of ~~Title 21 of the Oklahoma Statutes~~
14 this title;

15 ~~126.~~ 128. Issuing duplicate bills of lading or warehouse
16 receipts, as provided for in Section 1414 of ~~Title 21 of the~~
17 ~~Oklahoma Statutes~~ this title;

18 ~~127.~~ 129. Selling goods without consent of holder of bill of
19 lading, as provided for in Section 1415 of ~~Title 21 of the Oklahoma~~
20 ~~Statutes~~ this title;

21 ~~128.~~ 130. Unlawful delivery of goods, value from Two Thousand
22 Five Hundred Dollars (\$2,500.00) to Fifteen Thousand Dollars
23 (\$15,000.00), as provided for in paragraph 3 of Section 1416 of
24 ~~Title 21 of the Oklahoma Statutes~~ this title;

1 ~~129.~~ 131. Burglary in the third degree, as provided for in
2 subsection B of Section 1435 of ~~Title 21 of the Oklahoma Statutes~~
3 this title;

4 ~~130.~~ 132. Embezzlement of property, value from Two Thousand
5 Five Hundred Dollars (\$2,500.00) to Fifteen Thousand Dollars
6 (\$15,000.00), as provided for in subsection A of Section 1451 of
7 ~~Title 21 of the Oklahoma Statutes~~ this title;

8 ~~131.~~ 133. Extortion, as provided for in Section 1481 of ~~Title~~
9 ~~21 of the Oklahoma Statutes~~ this title;

10 ~~132.~~ 134. Extortion induced by threats, as provided for in
11 Section 1482 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12 ~~133.~~ 135. Obtain signatures by extortion, as provided for in
13 Section 1485 of ~~Title 21 of the Oklahoma Statutes~~ this title;

14 ~~134.~~ 136. Extortion by threatening letter, as provided for in
15 Section 1486 of ~~Title 21 of the Oklahoma Statutes~~ this title;

16 ~~135.~~ 137. Blackmail, as provided for in Section 1488 of ~~Title~~
17 ~~21 of the Oklahoma Statutes~~ this title;

18 ~~136.~~ 138. Defrauding hotel, inn, or restaurant, value of One
19 Thousand Dollars (\$1,000.00) or more, as provided for in Section
20 1503 of ~~Title 21 of the Oklahoma Statutes~~ this title;

21 ~~137.~~ 139. Renting motor vehicle with bogus check, value of One
22 Thousand Dollars (\$1,000.00) or more, as provided for in Section
23 1521 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 ~~138.~~ 140. Receive money or property by impersonating another,
2 value from Two Thousand Five Hundred Dollars (\$2,500.00) to Fifteen
3 Thousand Dollars (\$15,000.00), as provided for in paragraph 3 of
4 Section 1532 of ~~Title 21 of the Oklahoma Statutes~~ this title;

5 ~~139.~~ 141. False use of "State Police" with intent to
6 communicate policing authority, and another is injured, defrauded,
7 harassed, or vexed, as provided for in subsection G of Section 1533
8 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9 ~~140.~~ 142. Identity theft, as provided for in Section 1533.1 of
10 ~~Title 21 of the Oklahoma Statutes~~ this title;

11 ~~141.~~ 143. Felony value - false pretense, bogus check, con game,
12 valued from Two Thousand Five Hundred Dollars (\$2,500.00) to Fifteen
13 Thousand Dollars (\$15,000.00), as provided for in subsection A of
14 Section 1541.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

15 ~~142.~~ 144. Two or more false or bogus checks, valued from Two
16 Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand
17 Dollars (\$15,000.00), as provided for in subsection A of Section
18 1541.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

19 ~~143.~~ 145. Obtaining money or property with false negotiable
20 paper, as provided for in Section 1544 of ~~Title 21 of the Oklahoma~~
21 ~~Statutes~~ this title;

22 ~~144.~~ 146. Signs credit or debit card with intent to defraud, as
23 provided for in subsection ~~(a)~~ A of Section 1550.28 of ~~Title 21 of~~
24 ~~the Oklahoma Statutes~~ this title;

1 ~~145.~~ 147. Possess credit or debit card of another with intent
2 to defraud, as provided for in subsection ~~(b)~~ B of Section 1550.28
3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

4 ~~146.~~ 148. Possessing incomplete credit cards with intent to
5 complete, as provided for in Section 1550.31 of ~~Title 21 of the~~
6 ~~Oklahoma Statutes~~ this title;

7 ~~147.~~ 149. Possess firearm with altered ID during commission of
8 a felony, as provided for in subsection A of Section 1550 of ~~Title~~
9 ~~21 of the Oklahoma Statutes~~ this title;

10 ~~148.~~ 150. Make, sell, or display false identification for
11 felony purposes or to mislead police officer, as provided for in
12 subsection C of Section 1550.41 of ~~Title 21 of the Oklahoma Statutes~~
13 this title;

14 ~~149.~~ 151. Forgery of state, public, court, or corporate seals,
15 as provided for in Section 1571 of ~~Title 21 of the Oklahoma Statutes~~
16 this title;

17 ~~150.~~ 152. Forgery of records, as provided for in Section 1572
18 of ~~Title 21 of the Oklahoma Statutes~~ this title;

19 ~~151.~~ 153. Making false entry in records, as provided for in
20 Section 1573 of ~~Title 21 of the Oklahoma Statutes~~ this title;

21 ~~152.~~ 154. Forgery of certification or acknowledgement of
22 conveyance, as provided for in Section 1574 of ~~Title 21 of the~~
23 ~~Oklahoma Statutes~~ this title;

1 ~~153.~~ 155. Forgery II / Forgery III, valued from Two Thousand
2 Five Hundred Dollars (\$2,500.00) to Fifteen Thousand Dollars
3 (\$15,000.00), as provided for in subsection A of Section 1577 of
4 ~~Title 21 of the Oklahoma Statutes~~ this title;

5 ~~154.~~ 156. Possession of forged evidence of debt, valued from
6 Two Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand
7 Dollars (\$15,000.00), as provided for in subsection A of Section
8 1578 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9 ~~155.~~ 157. Possession of other forged instrument, valued from
10 Two Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand
11 Dollars (\$15,000.00), as provided for in subsection A of Section
12 1579 of ~~Title 21 of the Oklahoma Statutes~~ this title;

13 ~~156.~~ 158. Issuing spurious or false certificates of stock, as
14 provided for in Section 1580 of ~~Title 21 of the Oklahoma Statutes~~
15 this title;

16 ~~157.~~ 159. Reissuing canceled certificates of stock, as provided
17 for in Section 1581 of ~~Title 21 of the Oklahoma Statutes~~ this title;

18 ~~158.~~ 160. Issuing or pledging false evidence of debt, as
19 provided for in Section 1582 of ~~Title 21 of the Oklahoma Statutes~~
20 this title;

21 ~~159.~~ 161. Counterfeiting coin, as provided for in Section 1583
22 of ~~Title 21 of the Oklahoma Statutes~~ this title;

23 ~~160.~~ 162. Counterfeiting coin for exportation, as provided for
24 in Section 1584 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 ~~161.~~ 163. Forging process of court or title to property, as
2 provided for in Section 1585 of ~~Title 21 of the Oklahoma Statutes~~
3 this title;

4 ~~162.~~ 164. Making false entries in public book, as provided for
5 in Section 1586 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6 ~~163.~~ 165. Forging tickets of passage, as provided for in
7 Section 1587 of ~~Title 21 of the Oklahoma Statutes~~ this title;

8 ~~164.~~ 166. Forging postage stamps, as provided for in Section
9 1588 of ~~Title 21 of the Oklahoma Statutes~~ this title;

10 ~~165.~~ 167. Falsification of corporate records, as provided for
11 in Section 1589 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12 ~~166.~~ 168. Employee making false entries, as provided for in
13 Section 1590 of ~~Title 21 of the Oklahoma Statutes~~ this title;

14 ~~167.~~ 169. Possessing counterfeit coin with intent to circulate,
15 as provided for in Section 1591 of ~~Title 21 of the Oklahoma Statutes~~
16 this title;

17 ~~168.~~ 170. Uttering forged instruments, value from Two Thousand
18 Five Hundred Dollars (\$2,500.00) to Fifteen Thousand Dollars
19 (\$15,000.00), as provided for in subsection A of Section 1592 of
20 ~~Title 21 of the Oklahoma Statutes~~ this title;

21 ~~169.~~ 171. Falsely procuring another's signature, as provided
22 for in Section 1593 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 ~~170.~~ 172. Utter signature of another with same name, as
2 provided for in Section 1622 of ~~Title 21 of the Oklahoma Statutes~~
3 this title;

4 ~~171.~~ 173. Uttering one's endorsement as another's, as provided
5 for in Section 1623 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6 ~~172.~~ 174. Erasure or alterations with intent to defraud, as
7 provided for in Section 1624 of ~~Title 21 of the Oklahoma Statutes~~
8 this title;

9 ~~173.~~ 175. Sign fictitious name as officer of corporation, as
10 provided for in Section 1626 of ~~Title 21 of the Oklahoma Statutes~~
11 this title;

12 ~~174.~~ 176. Fraudulent insolvency of corporation, as provided for
13 in Section 1639 of ~~Title 21 of the Oklahoma Statutes~~ this title;

14 ~~175.~~ 177. Workers' compensation fraud, as provided for in
15 Section 1663 of ~~Title 21 of the Oklahoma Statutes~~ this title;

16 ~~176.~~ 178. Willfully poisoning animal, as provided for in
17 Section 1681 of ~~Title 21 of the Oklahoma Statutes~~ this title;

18 ~~177.~~ 179. Larceny of lost property, value from Two Thousand
19 Five Hundred Dollars (\$2,500.00) to Fifteen Thousand Dollars
20 (\$15,000.00), as provided for in paragraph 3 of Section 1702 of
21 ~~Title 21 of the Oklahoma Statutes~~ this title;

22 ~~178.~~ 180. Grand larceny, value from Two Thousand Five Hundred
23 Dollars (\$2,500.00) to Fifteen Thousand Dollars (\$15,000.00), as
24

1 provided for in subsection A of Section 1705 of ~~Title 21 of the~~
2 ~~Oklahoma Statutes~~ this title;

3 ~~179.~~ 181. Larceny of written instrument, as provided for in
4 Section 1709 of ~~Title 21 of the Oklahoma Statutes~~ this title;

5 ~~180.~~ 182. Receive, possess, or conceal stolen property, value
6 from Two Thousand Five Hundred Dollars (\$2,500.00) to Fifteen
7 Thousand Dollars (\$15,000.00), as provided for in subsection A of
8 Section 1713 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9 ~~181.~~ 183. Bringing stolen property into state, value from Two
10 Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand
11 Dollars (\$15,000.00), as provided for in Section 1715 of ~~Title 21 of~~
12 ~~the Oklahoma Statutes~~ this title;

13 ~~182.~~ 184. Larceny of dogs, as provided for in Section 1718 of
14 ~~Title 21 of the Oklahoma Statutes~~ this title;

15 ~~183.~~ 185. Larceny of or receiving stolen fowls, as provided for
16 in Section 1719 of ~~Title 21 of the Oklahoma Statutes~~ this title;

17 ~~184.~~ 186. Larceny of domesticated fish or game, value One
18 Thousand Dollars (\$1,000.00) or more, as provided for in Section
19 1719.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

20 ~~185.~~ 187. Larceny of auto, aircraft, or other motor vehicle,
21 value less than Fifty Thousand Dollars (\$50,000.00), as provided for
22 in Section 1720 of ~~Title 21 of the Oklahoma Statutes~~ this title;

23 ~~186.~~ 188. Larceny from building or house, as provided for in
24 Section 1723 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 ~~187.~~ 189. Possession of mercury, as provided for in Section
2 1726 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3 ~~188.~~ 190. Entering with intent to steal copper, as provided for
4 in Section 1727 of ~~Title 21 of the Oklahoma Statutes~~ this title;

5 ~~189.~~ 191. Possessing, receiving, or transporting stolen copper,
6 as provided for in Section 1728 of ~~Title 21 of the Oklahoma Statutes~~
7 this title;

8 ~~190.~~ 192. Larceny of merchandise from retailer, value from Two
9 Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand
10 Dollars (\$15,000.00), as provided for in subsection A of Section
11 1731 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12 ~~191.~~ 193. Larceny of trade secrets, value from Two Thousand
13 Five Hundred Dollars (\$2,500.00) to Fifteen Thousand Dollars
14 (\$15,000.00), as provided for in Section 1732 of ~~Title 21 of the~~
15 ~~Oklahoma Statutes~~ this title;

16 ~~192.~~ 194. Procuring, selling, or receiving telephone records by
17 fraud (single telephone record), as provided for in subsection A of
18 Section 1742.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

19 ~~193.~~ 195. Injury to or obstruction of railroad, as provided for
20 in Section 1751 of ~~Title 21 of the Oklahoma Statutes~~ this title;

21 ~~194.~~ 196. Interfering with railroad, as provided for in Section
22 1752.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

23
24

1 ~~195.~~ 197. Possess, use, manufacture, or threaten to use
2 incendiary device or explosives without injury, as provided for in
3 Section 1767.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

4 ~~196.~~ 198. Removing or injuring piles securing bank or dam, as
5 provided for in Section 1777 of ~~Title 21 of the Oklahoma Statutes~~
6 this title;

7 ~~197.~~ 199. Maliciously injuring written instrument, value from
8 Two Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand
9 Dollars (\$15,000.00), as provided for in Section 1779 of ~~Title 21 of~~
10 ~~the Oklahoma Statutes~~ this title;

11 ~~198.~~ 200. Place hard object or inflammable object in grain or
12 cotton, as provided for in Section 1837 of ~~Title 21 of the Oklahoma~~
13 ~~Statutes~~ this title;

14 ~~199.~~ 201. Selling five or more unlawful telecommunication
15 devices within six (6) months, as provided for in subsection B of
16 Section 1873 of ~~Title 21 of the Oklahoma Statutes~~ this title;

17 ~~200.~~ 202. Manufacturing five or more unlawful
18 telecommunications devices within six (6) months, as provided for in
19 subsection B of Section 1874 of ~~Title 21 of the Oklahoma Statutes~~
20 this title;

21 ~~201.~~ 203. Unauthorized removal of baggage or cargo from bus or
22 terminal, as provided for in Section 1904 of ~~Title 21 of the~~
23 ~~Oklahoma Statutes~~ this title;

24

1 ~~202.~~ 204. Access computer system or network with unlawful
2 intent, as provided for in Section 1958 of ~~Title 21 of the Oklahoma~~
3 ~~Statutes~~ this title;

4 ~~203.~~ 205. Reproduction of sound recording without consent, one
5 hundred (100) or more articles, as provided for in Section 1976 of
6 ~~Title 21 of the Oklahoma Statutes~~ this title;

7 ~~204.~~ 206. Unlawfully sell sound recordings, as provided for in
8 Section 1977 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9 ~~205.~~ 207. Broadcast or live recording for sale without consent,
10 as provided for in Section 1978 of ~~Title 21 of the Oklahoma Statutes~~
11 this title;

12 ~~206.~~ 208. Rent or sell articles without true name of
13 manufacturer, as provided for in Section 1979 of ~~Title 21 of the~~
14 ~~Oklahoma Statutes~~ this title;

15 ~~207.~~ 209. Counterfeiting recording or article label, as
16 provided for in Section 1980 of ~~Title 21 of the Oklahoma Statutes~~
17 this title;

18 ~~208.~~ 210. Violation of Trademark Anti-Counterfeiting Act, as
19 provided for in Section 1990.2 of ~~Title 21 of the Oklahoma Statutes~~
20 this title;

21 ~~209.~~ 211. Tampering with security equipment, as provided for in
22 Section 1993 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 ~~210.~~ 212. Sex offender engaging in ice cream truck vending, as
2 provided for in Section 2100.1 of ~~Title 21 of the Oklahoma Statutes~~
3 this title;

4 ~~211.~~ 213. Protective order violation, second or subsequent
5 offense, as provided for in subsection A of Section 60.6 of Title 22
6 of the Oklahoma Statutes;

7 ~~212.~~ 214. Protective order violation resulting in physical
8 injury, as provided for in subsection B of Section 60.6 of Title 22
9 of the Oklahoma Statutes;

10 ~~213.~~ 215. Disposal of seized liquor by officer, as provided for
11 in Section 1263 of Title 22 of the Oklahoma Statutes;

12 ~~214.~~ 216. False affidavits, as provided for in Section 1264 of
13 Title 22 of the Oklahoma Statutes;

14 ~~215.~~ 217. Interfering with voting machine, as provided for in
15 Section 9-118 of Title 26 of the Oklahoma Statutes;

16 ~~216.~~ 218. Voting illegally, as provided for in Section 16-102
17 of Title 26 of the Oklahoma Statutes;

18 ~~217.~~ 219. Removing ballot from or carrying ballot into polling
19 place, as provided for in Section 16-102.1 of Title 26 of the
20 Oklahoma Statutes;

21 ~~218.~~ 220. False application for an absentee ballot, as provided
22 for in Section 16-102.2 of Title 26 of the Oklahoma Statutes;

23 ~~219.~~ 221. False affidavit in voting registration, as provided
24 for in Section 16-103 of Title 26 of the Oklahoma Statutes;

1 ~~220.~~ 222. Causing unqualified persons to be invalidly
2 registered, as provided for in Section 16-103.1 of Title 26 of the
3 Oklahoma Statutes;
4 ~~221.~~ 223. False notarization of absentee ballot, as provided
5 for in Section 16-104 of Title 26 of the Oklahoma Statutes;
6 ~~222.~~ 224. Perpetrate fraud or theft to affect election, as
7 provided for in Section 16-105 of Title 26 of the Oklahoma Statutes;
8 ~~223.~~ 225. Bribes to influence votes, as provided for in Section
9 16-106 of Title 26 of the Oklahoma Statutes;
10 ~~224.~~ 226. Offer bribe to withdraw as candidate, as provided for
11 in Section 16-107 of Title 26 of the Oklahoma Statutes;
12 ~~225.~~ 227. Solicit or accept bribe for withdrawal of candidacy,
13 as provided for in Section 16-108 of Title 26 of the Oklahoma
14 Statutes;
15 ~~226.~~ 228. Prevent person from registering to vote or voting, as
16 provided for in Section 16-109 of Title 26 of the Oklahoma Statutes;
17 ~~227.~~ 229. Printing or possession of ballots illegally, as
18 provided for in Section 16-120 of Title 26 of the Oklahoma Statutes;
19 ~~228.~~ 230. Violation of the Oklahoma Pollutant Discharge
20 Elimination System Act, as provided for in subsection G of Section
21 2-6-206 of Title 27A of the Oklahoma Statutes;
22 ~~229.~~ 231. Falsely state information to the Department of
23 Environmental Quality, as provided for in Section 2-7-109 of Title
24 27A of the Oklahoma Statutes;

1 ~~230.~~ 232. Falsify information on permit application for
2 Oklahoma Solid Waste Management Act, as provided for in Section 2-
3 10-302 of Title 27A of the Oklahoma Statutes;

4 ~~231.~~ 233. Violation of use of solid waste disposal sites, as
5 provided for in Section 2-10-801 of Title 27A of the Oklahoma
6 Statutes;

7 ~~232.~~ 234. Filing false sale with Insurance Commissioner, as
8 provided for in Section 311.1 of Title 36 of the Oklahoma Statutes;

9 ~~233.~~ 235. Selling insurance with revoked or suspended license,
10 as provided for in subsection A of Section 1435.26 of Title 36 of
11 the Oklahoma Statutes;

12 ~~234.~~ 236. Aiding or conspiring with a person whose insurance
13 license is revoked or suspended, as provided for in subsection B of
14 Section 1435.26 of Title 36 of the Oklahoma Statutes;

15 ~~235.~~ 237. False statements, reports, or filings with intent to
16 deceive Insurance Commissioner, as provided for in subsection E of
17 Section 1643 of Title 36 of the Oklahoma Statutes;

18 ~~236.~~ 238. Violation of the Viatical Settlements Act of 2008,
19 value from Five Hundred Dollars (\$500.00) to Two Thousand Five
20 Hundred Dollars (\$2,500.00), as provided for in subsection F of
21 Section 4055.14 of Title 36 of the Oklahoma Statutes;

22 ~~237.~~ 239. Violation of prepaid funeral provisions, as provided
23 for in Section 6130 of Title 36 of the Oklahoma Statutes;

1 ~~238.~~ 240. Out-of-state retailer shipping alcoholic beverages
2 into state, as provided for in Section 3-101 of Title 37A of the
3 Oklahoma Statutes;

4 ~~239.~~ 241. Permit invitee under twenty-one (21) to possess or
5 consume alcohol, as provided for in subsection A of Section 6-101 of
6 Title 37A of the Oklahoma Statutes;

7 ~~240.~~ 242. Permit invitee under twenty-one (21) to possess or
8 consume alcohol resulting in great bodily injury or death, as
9 provided for in subsection C of Section 6-101 of Title 37A of the
10 Oklahoma Statutes;

11 ~~241.~~ 243. Sale of alcoholic beverages outside of authorized day
12 or hours, as provided for in Section 6-123 of Title 37A of the
13 Oklahoma Statutes;

14 ~~242.~~ 244. Disclosing confidential information concerning
15 violation of Employment Security Act of 1980, as provided for in
16 Section 4-508 of Title 40 of the Oklahoma Statutes;

17 ~~243.~~ 245. Hiring armed guards without permit, as provided for
18 in Section 169 of Title 40 of the Oklahoma Statutes;

19 ~~244.~~ 246. Causing employee death by commanding to enter steam
20 boiler, as provided for in Section 183 of Title 40 of the Oklahoma
21 Statutes;

22 ~~245.~~ 247. False statement about lien by contractor, as provided
23 for in Section 142.4 of Title 42 of the Oklahoma Statutes;

1 ~~246.~~ 248. Mechanics liens/embezzlement, valued from Two
2 Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand
3 Dollars (\$15,000.00), as provided for in Section 142.6 of Title 42
4 of the Oklahoma Statutes;

5 ~~247.~~ 249. Marrying prohibited persons, as provided for in
6 Section 14 of Title 43 of the Oklahoma Statutes;

7 ~~248.~~ 250. Bigamy and remarriage, as provided for in Section 123
8 of Title 43 of the Oklahoma Statutes;

9 ~~249.~~ 251. Mistreatment of mental health patient, as provided
10 for in Section 2-219 of Title 43A of the Oklahoma Statutes;

11 ~~250.~~ 252. Violation of opioid substitution treatment program,
12 as provided for in Section 3-601 of Title 43A of the Oklahoma
13 Statutes;

14 ~~251.~~ 253. Coerce another to execute a declaration of revocation
15 of an advanced directive, as provided for in subsection D of Section
16 11-113 of Title 43A of the Oklahoma Statutes;

17 ~~252.~~ 254. Unauthorized use of implement of husbandry, as
18 provided for in subsection B of Section 4-102 of Title 47 of the
19 Oklahoma Statutes;

20 ~~253.~~ 255. Receive, possess, or conceal implement of husbandry,
21 as provided for in subsection B of Section 4-103 of Title 47 of the
22 Oklahoma Statutes;

1 ~~254.~~ 256. Removed, falsified, or unauthorized identification,
2 as provided for in subsection A of Section 4-107 of Title 47 of the
3 Oklahoma Statutes;

4 ~~255.~~ 257. Buy, receive, possess, or sell motor vehicle with VIN
5 removed or defaced with intent to conceal, as provided for in
6 subsection C of Section 4-107 of Title 47 of the Oklahoma Statutes;

7 ~~256.~~ 258. Destroying, removing, altering, covering, or
8 counterfeiting trim tag plates, as provided for in Section 4-107a of
9 Title 47 of the Oklahoma Statutes;

10 ~~257.~~ 259. Misuse of manufactured home certificate of title, as
11 provided for in subsection B of Section 4-110 of Title 47 of the
12 Oklahoma Statutes;

13 ~~258.~~ 260. Alter manufactured home certificate of title, as
14 provided for in subsection B of Section 4-110 of Title 47 of the
15 Oklahoma Statutes;

16 ~~259.~~ 261. Remove receipt with intent to misrepresent payment of
17 tax or fees, as provided for in subsection B of Section 4-110 of
18 Title 47 of the Oklahoma Statutes;

19 ~~260.~~ 262. Purchase registration receipt on assigned certificate
20 of title, as provided for in subsection B of Section 4-110 of Title
21 47 of the Oklahoma Statutes;

22 ~~261.~~ 263. Misuse of forged, counterfeit, or suspended driver
23 license, as provided for in Section 6-301 of Title 47 of the
24 Oklahoma Statutes;

1 ~~262.~~ 264. Perjury through false affidavit, as provided for in
2 Section 6-302 of Title 47 of the Oklahoma Statutes;

3 ~~263.~~ 265. Interference with traffic control device resulting in
4 injury or death, as provided for in subsection B of Section 11-207
5 of Title 47 of the Oklahoma Statutes;

6 ~~264.~~ 266. Buy, sell, or dispose vehicle with altered VIN, chop
7 shop, as provided for in subsection C of Section 1503 of Title 47 of
8 the Oklahoma Statutes;

9 ~~265.~~ 267. Attempt to violate chop shop laws, as provided for in
10 subsection D of Section 1503 of Title 47 of the Oklahoma Statutes;

11 ~~266.~~ 268. Perjury before the Corporation Commission, as
12 provided for in Section 108 of Title 52 of the Oklahoma Statutes;

13 ~~267.~~ 269. Delay probation duties of the Corporation Commission
14 with use or attempted use of firearms, as provided for in Section
15 114 of Title 52 of the Oklahoma Statutes;

16 ~~268.~~ 270. Conspiracy to violate Oklahoma Oil and Gas
17 Conservation Act, as provided for in Section 115 of Title 52 of the
18 Oklahoma Statutes;

19 ~~269.~~ 271. Corruption of Corporation Commission, as provided for
20 in Section 117 of Title 52 of the Oklahoma Statutes;

21 ~~270.~~ 272. Misappropriation of gas, as provided for in Section
22 235 of Title 52 of the Oklahoma Statutes;

23 ~~271.~~ 273. Falsification of application for emergency relief, as
24 provided for in Section 26.18 of Title 56 of the Oklahoma Statutes;

1 ~~272.~~ 274. Medicaid fraud, as provided for in Section 1005 of
2 Title 56 of the Oklahoma Statutes;
3 ~~273.~~ 275. Fraudulently obtaining or receiving assistance, value
4 of Five Thousand Dollars (\$5,000.00) or more, as provided for in
5 Section 1005.1 of Title 56 of the Oklahoma Statutes;
6 ~~274.~~ 276. Carry contraband into jail or prison, as provided for
7 in subsection B of Section 21 of Title 57 of the Oklahoma Statutes;
8 ~~275.~~ 277. Possess cell phone in jail or prison, as provided for
9 in subsection E of Section 21 of Title 57 of the Oklahoma Statutes;
10 ~~276.~~ 278. Jail employee receiving compensation from inmate,
11 value of Five Hundred Dollars (\$500.00) or more, as provided for in
12 Section 22 of Title 57 of the Oklahoma Statutes;
13 ~~277.~~ 279. Use of convict labor on private property, as provided
14 for in Section 222 of Title 57 of the Oklahoma Statutes;
15 ~~278.~~ 280. Failure to comply with Mary Rippe Violent Crime
16 Offenders Registration Act, as provided for in Section 599 of Title
17 57 of the Oklahoma Statutes;
18 ~~279.~~ 281. Practicing dentistry without a license, as provided
19 for in subsection B of Section 328.49 of Title 59 of the Oklahoma
20 Statutes;
21 ~~280.~~ 282. Giving false information to obtain license, as
22 provided for in subsection B of Section 328.49 of Title 59 of the
23 Oklahoma Statutes;
24

1 ~~281.~~ 283. Impersonating a pharmacist, as provided for in
2 Section 353.17A of Title 59 of the Oklahoma Statutes;

3 ~~282.~~ 284. Alteration of prescription or unlawful dispensing of
4 drugs, second violation, as provided for in Section 353.24 of Title
5 59 of the Oklahoma Statutes;

6 ~~283.~~ 285. False representation in procuring license under the
7 Oklahoma Pharmacy Act, as provided for in subsection B of Section
8 353.25 of Title 59 of the Oklahoma Statutes;

9 ~~284.~~ 286. Cremation without license and permit, as provided for
10 in Section 396.33 of Title 59 of the Oklahoma Statutes;

11 ~~285.~~ 287. Practicing medicine without a license, as provided
12 for in Section 491 of Title 59 of the Oklahoma Statutes;

13 ~~286.~~ 288. Violation of the Oklahoma Osteopathic Medicine Act,
14 as provided for in Section 638 of Title 59 of the Oklahoma Statutes;

15 ~~287.~~ 289. Acting as building inspector without a license, as
16 provided for in Section 1044 of Title 59 of the Oklahoma Statutes;

17 ~~288.~~ 290. Affidavit as to undertaking, as provided for in
18 Section 1322 of Title 59 of the Oklahoma Statutes;

19 ~~289.~~ 291. Bail jumping, as provided for in Section 1335 of
20 Title 59 of the Oklahoma Statutes;

21 ~~290.~~ 292. False declaration of ownership in pawn shop, value of
22 One Thousand Dollars (\$1,000.00) or more, if property is firearms,
23 or was acquired through robbery or burglary, as provided for in
24 subsection C of Section 1512 of Title 59 of the Oklahoma Statutes;

1 ~~291.~~ 293. Violation of Oklahoma Security Guard and Private
2 Investigator Act, as provided for in subsection B of Section 1750.11
3 of Title 59 of the Oklahoma Statutes;

4 ~~292.~~ 294. Collusion among bidders, as provided for in Section
5 115 of Title 61 of the Oklahoma Statutes;

6 ~~293.~~ 295. Disclosure of terms of bids, as provided for in
7 Section 116 of Title 61 of the Oklahoma Statutes;

8 ~~294.~~ 296. False or illegal voucher by public official, as
9 provided for in Section 81 of Title 62 of the Oklahoma Statutes;

10 ~~295.~~ 297. Use of facsimile signature or seal with intent to
11 defraud, as provided for in Section 604 of Title 62 of the Oklahoma
12 Statutes;

13 ~~296.~~ 298. Distribution of controlled substance, possession with
14 intent, Schedule III, IV, and V drugs, as provided for in subsection
15 A of Section 2-401 of Title 63 of the Oklahoma Statutes;

16 ~~297.~~ 299. Distribution of counterfeit controlled substance,
17 possession with intent, Schedule III, IV, and V drugs, as provided
18 for in subsection A of Section 2-401 of Title 63 of the Oklahoma
19 Statutes;

20 ~~298.~~ 300. Robbery of controlled dangerous substance, as
21 provided for in subsection B of Section 2-403 of Title 63 of the
22 Oklahoma Statutes;

1 ~~299.~~ 301. Distribute or dispense controlled substance without
2 required order form, as provided for in subsection A of Section 2-
3 404 of Title 63 of the Oklahoma Statutes;

4 ~~300.~~ 302. Manufacture, distribute, or dispense controlled
5 substance not authorized by registration, as provided for in
6 subsection A of Section 2-404 of Title 63 of the Oklahoma Statutes;

7 ~~301.~~ 303. Omit, remove, alter, or obliterate symbol required on
8 controlled substance, as provided for in subsection A of Section 2-
9 404 of Title 63 of the Oklahoma Statutes;

10 ~~302.~~ 304. Refuse or fail to make, keep, or furnish required
11 information, as provided for in subsection A of Section 2-404 of
12 Title 63 of the Oklahoma Statutes;

13 ~~303.~~ 305. Refuse entry or inspection of premises with respect
14 to controlled substance, as provided for in subsection A of Section
15 2-404 of Title 63 of the Oklahoma Statutes;

16 ~~304.~~ 306. Maintain place for keeping or selling controlled
17 substance, as provided for in subsection A of Section 2-404 of Title
18 63 of the Oklahoma Statutes;

19 ~~305.~~ 307. Sell, transfer, or provide money transmitter
20 equipment to unlicensed person, second or subsequent offense, as
21 provided for in subsection A of Section 2-503.1d of Title 63 of the
22 Oklahoma Statutes;

23 ~~306.~~ 308. Responsibility of permit holders, as provided for in
24 subsection A of Section 124.8 of Title 63 of the Oklahoma Statutes;

1 ~~307.~~ 309. Purchase or sell body parts for transplantation, as
2 provided for in Section 2200.16A of Title 63 of the Oklahoma
3 Statutes;

4 ~~308.~~ 310. Falsification, forgery, concealment, defacement, or
5 obliteration of document of gift, as provided for in Section
6 2200.17A of Title 63 of the Oklahoma Statutes;

7 ~~309.~~ 311. Unlawful possession of vessel or motor, as provided
8 for in Section 4209 of Title 63 of the Oklahoma Statutes;

9 ~~310.~~ 312. Receive, possess, sell, or dispose of stolen vessel
10 or motor, as provided for in Section 4209.1 of Title 63 of the
11 Oklahoma Statutes;

12 ~~311.~~ 313. Remove or alter ID number of vessel, as provided for
13 in subsection B of Section 4209.2 of Title 63 of the Oklahoma
14 Statutes;

15 ~~312.~~ 314. Buy, receive, possess, or dispose of vessel with
16 false ID number with intent to conceal, as provided for in
17 subsection D of Section 4209.2 of Title 63 of the Oklahoma Statutes;

18 ~~313.~~ 315. False statement in application for certificate of
19 title for stolen vehicle, as provided for in Section 4209.3 of Title
20 63 of the Oklahoma Statutes;

21 ~~314.~~ 316. Alteration or forging of vessel certificate of title,
22 as provided for in Section 4209.4 of Title 63 of the Oklahoma
23 Statutes;

24

1 ~~315.~~ 317. Possess vessel with altered ID number, as provided
2 for in subsection C of Section 4253 of Title 63 of the Oklahoma
3 Statutes;

4 ~~316.~~ 318. Destroying or falsifying checks to the Land Office,
5 as provided for in Section 1026 of Title 64 of the Oklahoma
6 Statutes;

7 ~~317.~~ 319. Prospecting on public lands without permit, as
8 provided for in Section 1094 of Title 64 of the Oklahoma Statutes;

9 ~~318.~~ 320. Business for profit by a member of the Department of
10 Transportation, as provided for in subsection B of Section 304 of
11 Title 66 of the Oklahoma Statutes;

12 ~~319.~~ 321. Business for profit by a member of the Department of
13 Transportation, as provided for in subsection B of Section 324 of
14 Title 66 of the Oklahoma Statutes;

15 ~~320.~~ 322. Failure to comply with request for county records, as
16 provided for in Section 83 of Title 67 of the Oklahoma Statutes;

17 ~~321.~~ 323. Refusal to file tax return with intent to defraud, as
18 provided for in Section 240.1 of Title 68 of the Oklahoma Statutes;

19 ~~322.~~ 324. Filing false sales tax report, as provided for in
20 Section 241 of Title 68 of the Oklahoma Statutes;

21 ~~323.~~ 325. Possession of controlled dangerous substances without
22 tax stamp, as provided for in Section 450.8 of Title 68 of the
23 Oklahoma Statutes;

1 ~~324.~~ 326. Remove tax stamp with intent to reuse, as provided
2 for in Section 450.9 of Title 68 of the Oklahoma Statutes;

3 ~~325.~~ 327. Making false oath to report required by Cotton
4 Manufacturers Act, as provided for in Section 2003 of Title 68 of
5 the Oklahoma Statutes;

6 ~~326.~~ 328. File false income tax return with intent to defraud,
7 as provided for in Section 2376 of Title 68 of the Oklahoma
8 Statutes;

9 ~~327.~~ 329. Fraudulent tax receipt by county treasurer, as
10 provided for in Section 2920 of Title 68 of the Oklahoma Statutes;

11 ~~328.~~ 330. False or fraudulent lists of taxable property, as
12 provided for in Section 2945 of Title 68 of the Oklahoma Statutes;

13 ~~329.~~ 331. False application under Oklahoma Quality Jobs Program
14 Act, as provided for in Section 3609 of Title 68 of the Oklahoma
15 Statutes;

16 ~~330.~~ 332. False application under Former Military Facility
17 Development Act, as provided for in Section 3807 of Title 68 of the
18 Oklahoma Statutes;

19 ~~331.~~ 333. False application under Oklahoma Specialized Quality
20 Investment Act, as provided for in Section 4109 of Title 68 of the
21 Oklahoma Statutes;

22 ~~332.~~ 334. False application under Oklahoma Quality Investment
23 Act, as provided for in Section 4209 of Title 68 of the Oklahoma
24 Statutes;

1 ~~333.~~ 335. Conflict of interest by a member of the
2 Transportation Commission, as provided for in Section 310 of Title
3 69 of the Oklahoma Statutes;

4 ~~334.~~ 336. Conflict of interest by a member of the Oklahoma
5 Turnpike Authority, as provided for in Section 1705 of Title 69 of
6 the Oklahoma Statutes;

7 ~~335.~~ 337. Violation of Oklahoma Highway Code of 1968, as
8 provided for in Section 1802 of Title 69 of the Oklahoma Statutes;

9 ~~336.~~ 338. Conflict of interest by Oklahoma Educational
10 Television Authority member, as provided for in Section 23-106 of
11 Title 70 of the Oklahoma Statutes;

12 ~~337.~~ 339. Alter or destroy audit records by Board of Regents,
13 as provided for in subsection E of Section 3909 of Title 70 of the
14 Oklahoma Statutes;

15 ~~338.~~ 340. Authority to receive gifts or funds, as provided for
16 in subsection B of Section 4306 of Title 70 of the Oklahoma
17 Statutes;

18 ~~339.~~ 341. Make takeover offer which is not effective under
19 Oklahoma Take-over Disclosure Act of 1985, as provided for in
20 subsection A of Section 453 of Title 71 of the Oklahoma Statutes;

21 ~~340.~~ 342. Fraudulent, deceptive, or manipulative acts in
22 takeover offer, as provided for in Section 455 of Title 71 of the
23 Oklahoma Statutes;

24

1 ~~341.~~ 343. Violation of Oklahoma Take-over Disclosure Act of
2 1985, as provided for in Section 460 of Title 71 of the Oklahoma
3 Statutes;

4 ~~342.~~ 344. Conflict of interest by Oklahoma Capitol Improvement
5 Authority member, as provided for in Section 162 of Title 73 of the
6 Oklahoma Statutes;

7 ~~343.~~ 345. Fraud in obtaining certification as a minority
8 business, as provided for in Section 85.45h of Title 74 of the
9 Oklahoma Statutes;

10 ~~344.~~ 346. False statement for small business surety bond
11 guarantee, as provided for in Section 85.47h of Title 74 of the
12 Oklahoma Statutes;

13 ~~345.~~ 347. Forge or alter criminal history record, as provided
14 for in subsection D of Section 150.9 of Title 74 of the Oklahoma
15 Statutes;

16 ~~346.~~ 348. Making or receiving kickback, as provided for in
17 Section 3404 of Title 74 of the Oklahoma Statutes;

18 ~~347.~~ 349. Pooling of bridge or highway contracts, as provided
19 for in Section 101 of Title 79 of the Oklahoma Statutes;

20 ~~348.~~ 350. Business for profit by Water Resources Board member,
21 as provided for in Section 1086.3 of Title 82 of the Oklahoma
22 Statutes;

23

24

1 ~~349.~~ 351. Conflict of interest by water district official or
2 employee, as provided for in Section 1281 of Title 82 of the
3 Oklahoma Statutes;

4 ~~350.~~ 352. Falsely executes a written declaration as a witness
5 to a will, as provided for in paragraph 6 of Section 55 of Title 84
6 of the Oklahoma Statutes; and

7 ~~351.~~ 353. False statement and misrepresentation, as provided
8 for in Section 6 of Title 85A of the Oklahoma Statutes.

9 B. Any person convicted of a Class D1 criminal offense set
10 forth in this section shall be punished by imprisonment in the
11 custody of the Department of Corrections for a term of not more than
12 five (5) years and shall serve at least twenty percent (20%) of the
13 sentence imposed before release from custody including release to
14 electronic monitoring pursuant to Section 510.9 of Title 57 of the
15 Oklahoma Statutes.

16 C. 1. Every person who, having been previously convicted of
17 one or two Class C or Class D criminal offenses, commits a Class D1
18 criminal offense shall, upon conviction, be punished by imprisonment
19 in the custody of the Department of Corrections for a term of not
20 less than one (1) year nor more than seven (7) years and shall serve
21 at least twenty percent (20%) of the sentence imposed before release
22 from custody including release to electronic monitoring pursuant to
23 Section 510.9 of Title 57 of the Oklahoma Statutes.

1 2. Every person who, having been previously convicted of three
2 Class C or Class D criminal offenses, or one or more Class Y, Class
3 A, or Class B criminal offenses, commits a Class D1 criminal offense
4 shall, upon conviction, be punished by imprisonment in the custody
5 of the Department of Corrections for a term of not less than two (2)
6 years nor more than ten (10) years and shall serve at least thirty
7 percent (30%) of the sentence imposed before release from custody
8 including release to electronic monitoring pursuant to Section 510.9
9 of Title 57 of the Oklahoma Statutes.

10 D. Unless specifically exempted pursuant to subsection E of
11 this section, Section 51.1 of ~~Title 21 of the Oklahoma Statutes~~ this
12 title shall not apply to Class D1 criminal offenses.

13 E. The criminal offenses listed in paragraphs 98, 108, 212,
14 213, and 229 of subsection A of this section shall be exempt from
15 the penalty provisions provided for in subsections B and C of this
16 section. Persons convicted of the criminal offenses provided for in
17 paragraphs 98, 108, 212, 213, and 229 of subsection A of this
18 section shall be punished in accordance with the corresponding
19 penalties provided for in the Oklahoma Statutes including Section
20 51.1 of ~~Title 21 of the Oklahoma Statutes~~ this title.

21 F. All Class D1 criminal offenses shall be punishable by the
22 corresponding fines as provided for in the Oklahoma Statutes.
23
24

1 SECTION 46. AMENDATORY 21 O.S. 2021, Section 1268.8, as
2 amended by Section 129, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
3 2025, Section 1268.8), is amended to read as follows:

4 Section 1268.8. Any person who knowingly or intentionally uses
5 a ~~money services~~ business engaged in money transmission, as defined
6 by the ~~Oklahoma Financial Transaction Reporting Act~~ Oklahoma Money
7 Transmission Modernization Act, or an electronic funds transfer
8 network for any purpose in violation of the Oklahoma Antiterrorism
9 Act, or with intent to facilitate any violation of the Oklahoma
10 Antiterrorism Act shall, upon conviction, be guilty of a Class B4
11 felony offense punishable by imprisonment in the custody of the
12 Department of Corrections for a term of not less than two (2) years
13 nor more than ten (10) years, or by a fine of not more than Fifty
14 Thousand Dollars (\$50,000.00) or an amount equal to twice the dollar
15 amount of each transaction, whichever is greater, or by both such
16 fine and imprisonment.

17 SECTION 47. AMENDATORY 63 O.S. 2021, Section 2-503.1b,
18 is amended to read as follows:

19 Section 2-503.1b. A. The Oklahoma State Bureau of Narcotics
20 and Dangerous Drugs Control shall conduct a criminal financial check
21 on all ~~registration~~ license applications submitted pursuant to the
22 ~~provisions of Section 1513 of Title 6 of the Oklahoma Statutes~~
23 Oklahoma Money Transmission Modernization Act. The applicant ~~for a~~
24 ~~money services business license~~ shall pay a fee of Fifty Dollars

1 (\$50.00) to the Bureau for the criminal financial check prior to
2 licensing. This shall be in addition to all other administrative
3 fees imposed by the Oklahoma Banking Department.

4 B. The Oklahoma State Bureau of Narcotics and Dangerous Drugs
5 Control shall have authority to access, review, and investigate any
6 ~~registration~~ license application and ~~supplier reports~~ other
7 documentation submitted to the Oklahoma State Banking Commissioner
8 pursuant to ~~Section 1513 of Title 6 of the Oklahoma Statutes~~ the
9 Oklahoma Money Transmission Modernization Act, for the purposes of
10 criminal financial checks, identifying or investigating suspicious
11 or illegal activities or to track illegal drug-related monies. A
12 copy of all money services transaction reports provided to the
13 Oklahoma State Banking Commissioner shall be provided to the Bureau.

14 SECTION 48. AMENDATORY 63 O.S. 2021, Section 2-503.1d,
15 as amended by Section 278, Chapter 486, O.S.L. 2025 (63 O.S. Supp.
16 2025, Section 2-503.1d), is amended to read as follows:

17 Section 2-503.1d. A. No person shall sell, give, transfer,
18 trade, supply, or provide any money transmitter equipment, ~~as~~
19 ~~defined by the Oklahoma Financial Transaction Reporting Act~~, to any
20 person not licensed by the Oklahoma State Banking Commissioner. Any
21 person violating the provisions of this section shall be guilty upon
22 conviction of a misdemeanor, for a first offense, and a Class D1
23 felony offense for any second or subsequent offense. The
24 misdemeanor penalty shall be a fine not exceeding Three Thousand

1 Dollars (\$3,000.00), or imprisonment in the county jail not to
2 exceed one (1) year, or both such fine and imprisonment. The Class
3 D1 felony penalty shall be imprisonment as provided for in
4 subsections B through F of Section 20N of Title 21 of the Oklahoma
5 Statutes, or a fine not exceeding Five Thousand Dollars (\$5,000.00),
6 or both such fine and imprisonment.

7 B. Any person who encourages, facilitates, or allows access to
8 any money transmitter equipment in any manner to facilitate any
9 violation of Section 2-503.1 of this title shall be guilty of a
10 Class C2 felony offense, upon conviction, punishable as provided for
11 in subsections B through F of Section 20M of Title 21 of the
12 Oklahoma Statutes.

13 SECTION 49. AMENDATORY 63 O.S. 2021, Section 2-503.1e,
14 as amended by Section 279, Chapter 486, O.S.L. 2025 (63 O.S. Supp.
15 2025, Section 2-503.1e), is amended to read as follows:

16 Section 2-503.1e. A. Any person who knowingly or intentionally
17 uses a ~~money services~~ business engaged in money transmission, as
18 defined by the ~~Oklahoma Financial Transaction Reporting Act~~ Oklahoma
19 Money Transmission Modernization Act, or an electronic funds
20 transfer network for any purpose in violation of Section 2-503.1 of
21 this title or Sections 2-503.1a through 2-503.1i of this title, or
22 with intent to facilitate any violation of the Uniform Controlled
23 Dangerous Substances Act or any statute of the United States
24 relating to controlled substances, or to commit any other crime

1 shall be guilty, upon conviction, of a Class C2 felony offense and
2 shall be punished by imprisonment as provided for in subsections B
3 through F of Section 20M of Title 21 of the Oklahoma Statutes.

4 B. Any person who, by or through a ~~money services~~ business
5 engaged in money transmission, as defined in the ~~Oklahoma Financial~~
6 ~~Transaction Reporting Act~~ Oklahoma Money Transmission Modernization
7 Act, or an electronic funds transfer network, knowingly transmits,
8 exchanges, or processes any securities or negotiable instruments for
9 any purpose in violation of Section 2-503.1 of this title or
10 Sections 2-503.1a through 2-503.1i of this title shall be guilty,
11 upon conviction, of a Class C2 felony offense and shall be punished
12 by imprisonment as provided for in subsections B through F of
13 Section 20M of Title 21 of the Oklahoma Statutes.

14 SECTION 50. AMENDATORY 63 O.S. 2021, Section 2-503.1h,
15 is amended to read as follows:

16 Section 2-503.1h. A. Unless otherwise provided, any person
17 convicted of violating any of the provisions of this act is guilty
18 of a Class C2 felony and ~~may~~ shall be punished by imprisonment ~~for~~
19 ~~not less than two (2) years nor more than ten (10) years as provided~~
20 for in subsections B through F of Section 20M of Title 21 of the
21 Oklahoma Statutes, or by a fine of not more than Fifty Thousand
22 Dollars (\$50,000.00) or an amount equal to twice the dollar amount
23 of each transaction, whichever is greater, or by both such fine and
24 imprisonment.

1 B. For the purposes of this act, the terms, "money transmitter
2 equipment" or a "money transmitter service" shall include an entity
3 or person engaged in activity in violation of these provisions
4 regardless of whether the person or entity is licensed to conduct
5 such activity under the ~~Oklahoma Financial Transaction Reporting Act~~
6 Oklahoma Money Transmission Modernization Act.

7 SECTION 51. AMENDATORY 63 O.S. 2021, Section 2-503.1i,
8 is amended to read as follows:

9 Section 2-503.1i. A. The Oklahoma State Bureau of Narcotics
10 and Dangerous Drugs Control shall have authority to intercept, seize
11 and forfeit any funds or equipment in violation of any provision of
12 the Drug Money Laundering and Wire Transmitter Act or in violation
13 of Section 2-503.1 of this title.

14 B. A warrant for the seizure of property pursuant to Section
15 1222 of Title 22 of the Oklahoma Statutes may be issued by a
16 district judge upon finding of probable cause for funds believed to
17 be used or intended for any violation of the Uniform Controlled
18 Dangerous Substances Act to any licensee under the ~~Oklahoma~~
19 ~~Financial Transaction Reporting Act~~ Oklahoma Money Transmission
20 Modernization Act.

21 C. The State Banking Commissioner or designee upon receipt of
22 an affidavit of probable cause from an agent of the Bureau, may
23 issue an emergency notice requiring a temporary freeze on an account
24 to any financial institution or ~~money services~~ business engaged in

1 money transmission under its jurisdiction. Such freeze shall halt
2 all transactions in the account. During the fifteen-day freeze, an
3 account holder may file an emergency appeal to the district court.
4 The district court shall schedule a hearing on the emergency appeal
5 within three (3) judicial days of the request. The provisions of
6 Section 2201 et seq. of Title 6 of the Oklahoma Statutes shall not
7 apply to this section. This freeze shall not exceed fifteen (15)
8 days and shall automatically expire unless:

9 1. A subsequent seizure warrant is issued by a district judge;
10 or

11 2. A notice of forfeiture is filed on the contents of the
12 account pursuant to Section 2-503 of this title.

13 D. No financial institution shall have liability to an account
14 holder for acting pursuant to this section.

15 SECTION 52. AMENDATORY 63 O.S. 2021, Section 2-503.1j,
16 is amended to read as follows:

17 Section 2-503.1j. A. Any licensee of a money transmission,
18 transmitter, or wire transmitter business ~~pursuant to the Oklahoma~~
19 ~~Financial Transaction Reporting Act~~ licensed under the Oklahoma
20 Money Transmission Modernization Act and their delegates shall
21 collect a fee of Five Dollars (\$5.00) for each transaction not in
22 excess of Five Hundred Dollars (\$500.00) and in addition to such fee
23 an amount equal to one percent (1%) of the amount in excess of Five
24 Hundred Dollars (\$500.00).

1 B. The fee prescribed by subsection A of this section shall be
2 remitted quarterly to the Oklahoma Tax Commission on such forms as
3 the Commission, with the assistance of the Oklahoma State Bureau of
4 Narcotics and Dangerous Drugs Control, may prescribe for such
5 purpose. All required forms and remittances shall be filed with the
6 Tax Commission not later than the fifteenth day of the month
7 following the close of each calendar quarter.

8 C. The Oklahoma Tax Commission shall apportion all revenues
9 derived from the fee to the Drug Money Laundering and Wire
10 Transmitter Revolving Fund.

11 D. Every licensee and their delegates shall post a notice on a
12 form prescribed by the Director of the Oklahoma State Bureau of
13 Narcotics and Dangerous Drugs Control that notifies customers that
14 upon filing an individual income tax return with either a valid
15 social security number or a valid taxpayer identification number the
16 customer shall be entitled to an income tax credit equal to the
17 amount of the fee paid by the customer for the transaction.

18 E. The Oklahoma Tax Commission shall be afforded all provisions
19 currently under law to enforce the provisions of subsection B of
20 this section. If a licensee fails to file reports or fails to remit
21 the fee authorized by subsection B of this section, the Oklahoma Tax
22 Commission shall have the authority pursuant to Section 212 of Title
23 68 of the Oklahoma Statutes to suspend the license of the licensee
24 and its delegates. A notification of the suspension shall also be

1 sent to the State Banking Commissioner and the Director of the
2 Oklahoma State Bureau of Narcotics and Dangerous Drugs Control. The
3 licensee and its delegates may not reapply for a license until all
4 required reports have been filed and all required fee amounts have
5 been remitted.

6 F. Upon request from the Oklahoma Tax Commission, the State
7 Banking Commissioner may make a claim against the surety bond of the
8 licensee on behalf of the State of Oklahoma.

9 G. The Oklahoma State Bureau of Narcotics and Dangerous Drugs
10 Control and its attorneys may assist the Oklahoma Tax Commission in
11 conducting audits and the prosecution and/or seeking of legal
12 remedies to ensure compliance with this act.

13 SECTION 53. AMENDATORY 63 O.S. 2021, Section 2-503.11,
14 is amended to read as follows:

15 Section 2-503.11. As used in the Drug Money Laundering and Wire
16 Transmitter Act:

17 1. "Conducts" includes initiating, concluding, or participating
18 in initiating, or concluding a transaction;

19 2. "Digital assets" means the same as defined in Section 1359
20 of Title 68 of the Oklahoma Statutes;

21 3. "Digital asset kiosk" means an electronic terminal acting as
22 a mechanical agent of the digital asset kiosk operator to enable the
23 digital asset kiosk operator to facilitate the exchange of digital
24

1 assets for money, bank credit, or other digital asset including, but
2 not limited to:

3 a. connecting directly to a separate digital asset
4 exchange that performs the actual digital asset
5 transmission, or

6 b. drawing upon the digital asset in the possession of
7 the electronic terminal's operator;

8 4. "Digital asset kiosk operator" means a person or entity that
9 owns, operates, or manages a digital asset kiosk located in this
10 state offering digital asset kiosk transactions;

11 5. "Financial institution" includes:

12 a. any financial institution, as defined in Section
13 5312(a) (2) of Title 31 of the United States Code, or
14 the regulations promulgated thereunder, and

15 b. any foreign bank, as defined in Section 3101 of Title
16 12 of the United States Code;

17 ~~3.~~ 6. "Financial transaction" means:

18 a. a transaction which in any way or degree affects
19 state, interstate or foreign commerce:

20 (1) involving the movement of funds by wire or other
21 means,

22 (2) involving one or more monetary instruments, or

23 (3) involving the transfer of title to any real
24 property, vehicle, vessel, or aircraft; or

1 b. a transaction involving the use of a financial
2 institution which is engaged in, or the activities of
3 which affect, state, interstate or foreign commerce
4 in any way or degree;

5 ~~4.~~ 7. "Knowing that the property involved in a financial
6 transaction represents the proceeds of some form of unlawful
7 activity" means that the person knew the property involved in the
8 transaction represented proceeds from some form, though not
9 necessarily which form, of any violation of the Uniform Controlled
10 Dangerous Substances Act;

11 ~~5.~~ 8. "Monetary instruments" means:

- 12 a. coin or currency of the United States or of any other
13 country, travelers' checks, personal checks, bank
14 checks, and money orders, or
15 b. investment securities or negotiable instruments, in
16 bearer form or otherwise in such form that title
17 thereto passes upon delivery;

18 ~~6.~~ 9. "Money transmitting" includes transferring funds by any
19 and all means including, but not limited to, transfers within this
20 state, country or to locations abroad by wire, check, draft,
21 facsimile, or courier;

22 10. "Money transmitter equipment" means any type of terminal,
23 machine, computer software, access to any network, or any other type
24 of tangible or intangible apparatus or system, or any combination

1 thereof, that may be used by a money transmitter to initiate a
2 transmittal of currency or digital assets;

3 ~~7.~~ 11. "Proceeds" means all things of value furnished, or
4 intended to be furnished, in exchange for a controlled dangerous
5 substance in violation of the Uniform Controlled Dangerous
6 Substances Act, including all proceeds traceable to such an
7 exchange, and all monies, negotiable instruments, and securities
8 used, or intended to be used to facilitate any violation of the
9 Uniform Controlled Dangerous Substances Act;

10 ~~8.~~ 12. "Specified unlawful activity" means any violation of the
11 Uniform Controlled Dangerous Substances Act; and

12 ~~9.~~ 13. "Transaction" includes a purchase, sale, loan, pledge,
13 gift, transfer, delivery, or other disposition, and with respect to
14 a financial institution includes a deposit, withdrawal, transfer
15 between accounts, exchange of currency, loan, extension of credit,
16 purchase or sale of any stock, bond, certificate of deposit, or
17 other monetary instrument, use of a safe deposit box, or any other
18 payment, transfer, or delivery by, through, or to a financial
19 institution, by whatever means effected.

20 SECTION 54. REPEALER 6 O.S. 2021, Sections 1511, 1512,
21 1513, 1514, and 1515, are hereby repealed.

22 SECTION 55. This act shall become effective November 1, 2026.
23
24

1 Passed the House of Representatives the 25th day of March, 2026.

2
3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

7
8 _____
9 Presiding Officer of the Senate